

The Indian Evidence Act, 1872

Source: <https://indiankanoon.org/doc/1953529/>

[Skip to main content](#)

[Legal Document View](#)

[Tools for analyzing structure and cite text of judgments](#)

[Unlock Advanced Research with](#)

[PRISM](#)

[AI](#)

[Integrated with over 4 crore judgments and laws ? designed for legal practitioners, researchers, students and institutions](#)

-

[Know your Kanoon](#)

-

[Doc Gen Hub](#)

-

[Counter Argument](#)

-

[Case Predict AI](#)

-

[Talk with IK Doc](#)

-

...

[Upgrade to Premium](#)

[Cites

0

, Cited by

66100

]

Union of India - Act

The Indian Evidence Act, 1872

UNION OF INDIA

India

The Indian Evidence Act, 1872

Act 1 of 1872

Published in Gazette 1 on 15 March 1872

Assented to on 15 March 1872

Commenced on 15 March 1872

[This is the version of this document from 11 August 2018.]

[Note: The original publication document is not available and this content could not be verified.]

[Amended by

The Criminal Law (Amendment) Act, 2005 (Act 2 of 2006)

on

1 January 2006

]

[Amended by The Criminal Law (Amendment) Act, 2018 (Act 22 of 2018) on

11 August 2018

]

Indian Evidence Act, 1872

(Act No. 1 of 1872)

Last Updated 30th December, 2019

Preamble. - Whereas it is expedient to consolidate, define and amend the law of Evidence;

It is hereby enacted as follows :-

{

|-

|

The Act has been extended to the new Provinces and merged States by the Merged States (Laws) Act, 1949 and to the States of Manipur, Tripura and Vindhya Pradesh by the Union Territories (Laws) Act, 1950. Manipur and Tripura are full-fledged States now, see Act

81 of 1971

. Vindhya Pradesh is a part of the State of Madhya Pradesh now, see Act

37 of 1956

.The Act has been extended to the State of Sikkim w.e.f. 13.9.1994 vide Notification No.S.O. 518(E), dated 9th July, 1994.

}

Part I ? Relevancy Of Facts

Chapter I

Preliminary

1.

Short title, extent and commencement.

This Act may be called the Indian Evidence Act, 1872.

It extends to the whole of India [***]

[Substituted by Act 3 of 1951, Section 3 and Sch., for "except Part B States".]

]and applies to all judicial proceedings in or before any Court, including Courts-martial, [other than Courts-martial convened under the Army Act (44 & 45 Vict., Clause 58),]

[Inserted by Act 18 of 1919, Section 3 and Sch.1. See Section 127 of the Army Act (44 and 45 Vict., Clause 58).]

[the Naval Discipline Act (29 & 30 Vict., c.109) or [* * *]

[Inserted by Act 35 of 1934, Section 2 and Sch.]

the Indian Navy (Discipline) Act, 1934 (34 of 1934),] [or the Air Force Act (7 Geo. t, Clause 51)]

[Inserted by Act 10 of 1927, Section 2 and Sch.I.]

, but not to [affidavits]

[As to practice relating to affidavits, see the Code of Civil Procedure, 1908 (5 of 1908), Section 30(c) and Sch.I, Order XIX, see also the Code of Criminal Procedure, 1973 (2 of 1974), Sections 295 and 297.]

presented to any Court or Officer, not to proceedings before an arbitrator;

And it shall come into force on the first day of September, 1872.

2.

Repeal of enactments

[Repealed by the Repealing Act, 1938 (1 to 1938), Section 2 and Schedule.]

3.

Interpretation clause.

In this Act the following words and expressions are used in the following senses, unless a contrary intention appears from the context :

"Court". - "Court" includes all [Judges]

[Cf. the Code of Civil Procedure, 1908 (5 of 1908), Section 2, the Indian Penal Code (45 of 1860), Section 19; and, for definition of [District Judge], the General Clauses Act, 1897 (

10 of 1897

), Section 3(17).]

and [Magistrates]

[Cf. the General Clauses Act, 1897 (

10 of 1897

), Section 3(32) and the Code of Criminal Procedure, 1973 (2 of 1974).]

, and all persons, except arbitrators, legally authorised to take evidence.

"Fact". - "Fact" means and includes -

(1)

any thing, state of things, or relation of things, capable of being perceived by the senses;

(2)

any mental condition of which any person is conscious.

Illustrations

(a)

That there are certain objects arranged in a certain order in a certain place, is a fact.

(b)

That a man heard or saw something, is a fact.

(c)

That a man said certain words, is a fact.

(d)

That a man holds a certain opinion, has a certain intention, acts in good faith or fraudulently, or uses a particular word in a particular sense, or is or was at a specified time conscious of a particular sensation, is a fact.

(e)

That a man has a certain reputation, is a fact.

"Relevant". - One fact is said to be relevant to another when the one is connected with the other in any of the ways referred to in the provisions of this Act relating to the relevancy of facts.

"Facts in issue". - The expression "facts in issue" means and includes - any fact from which, either by itself or in connection with other facts, the existence, non-existence, nature or extent of any right, liability or disability, asserted or denied in any suit or proceeding, necessarily follows.

Explanation. - Whenever, under the provisions of the law for the time being in force relating to [Civil Procedure]

[Now see the Code of Civil Procedure, 1908 (5 of 1908); as to the settlement of issue, see Sch.I, Order XIV.]

, any Court records an issue of fact, the fact to be asserted or denied in the answer to such issue, is a fact in issue.

Illustrations

A is accused of the murder of B.

At his trial the following facts may be in issue -

that A caused B's death;

that A intended to cause B's death;

that A had received grave and sudden provocation from B;

that A, at the time of doing the act which caused B's death, was, by reason of unsoundness of mind, incapable of knowing its nature.

"Document" - ["Document"]

[Cf. the Indian Penal Code (45 of 1860), Section 29 and the General Clauses Act, 1897 (10 of 1897

), Section 3(18).]

means any matter expressed or described upon any substance by means of letters, figures, or marks, or by more than one of those means, intended to be used, or which may be used, for the purpose of recording that matter.

Illustrations

A [writing]

[Cf. definition of [writing] in the General Clauses Act, 1897 (10 of 1897

), Section 3(65).]

is a document;

[Words printed, lithographed or photographed are documents;

A map or plan is a document;

An inscription on a metal plate or stone is a document;

A caricature is a document].

[Cf. definition of [writing] in the General Clauses Act, 1897 (

10 of 1897

), Section 3(65).]

"Evidence" - "Evidence" means and includes -

(1)

all statements which the Court permits or requires to be made before it by witnesses, in relation to matters of fact under inquiry; such statements are called oral evidence;

(2)

[all documents including electronic records produced for the inspection of the Court]

[Substituted by Act

21 of 2000

, Section 92 and Sch.II, for the

all documents produced for the inspection of the Court

.]

; such document are called documentary evidence.

"Proved". - A fact is said to be proved when, after considering the matters before it, the Court either believes it to exist, or considers its existence so probable that a prudent man ought, under the circumstances of the particular case, to act upon the supposition that it exists.

"Disproved" - A fact is said to be disproved when, after considering the matter before it, the Court either believes that it does not exist, or considers its non-existence so probable that a prudent man ought, under the circumstances of the particular case, to act upon the supposition that it does not exist.

"Not proved". - A fact is said not to be proved when it is neither proved nor disproved.

["India" - "India" means the territory of India excluding the State of Jammu and Kashmir.]

[Substituted by Act 3 of 1951, Section 3 and Sch., for the definitions of [State] and [States] which were inserted by A.O. 1950.]

[The expressions "Certifying Authority", [electronic signature]

[Inserted by Act

21 of 2000

, Section 92 and Sch.II (w.e.f. 17.10.2000).]

", [Electronic Signature Certificate]

[Substituted by the Information Technology (Amendment) Act, 2008 (10 of 2009), Section 52(a), for "digital signature" and [Digital Signature Certificate] respectively.]

, "electronic form", "electronic records", "information", "secure electronic record", "secure [electronic signature]

[Substituted by the Information Technology (Amendment) Act, 2008 (10 of 2009), Section 52(a), for "digital signature" and [Digital Signature Certificate] respectively.]

" and "subscriber" shall have the meanings respectively assigned to them in the Information Technology Act, 2000.]

4.

"May presume".

Whenever it is provided by this Act that the Court may presume a fact, it may either regard such fact as proved, unless and until it is disproved, or may call for proof of it.

"Shall presume". - Whenever it is directed by this Act that the Court shall presume a fact, it shall regard such fact as proved, unless and until it is disproved.

"Conclusive proof" - When one fact is declared by this Act to be conclusive proof of another, the Court shall, on proof of the one fact, regard the other as proved, and shall not allow evidence to be given for the purpose of disproving it.

Chapter II

Of the Relevancy of Facts

5.

Evidence may be given of facts in issue and relevant facts.

Evidence may be given in any suit or proceeding of the existence or non-existence of every fact in issue and of such other facts as are hereinafter declared to be relevant, and of no others.

Explanation. - This section shall not enable any person to give evidence of a fact which he is disentitled to prove by any provision of the law for the time being in force relating to [Civil Procedure]

[Now see the Code of Civil Procedure, 1908 (5 of 1908).]

Illustrations

(a)
A is tried for the murder of B by beating him with a club with the intention of causing his death.
At A's trial the following facts are in issue :

A's beating B with the club;
A's causing B's death by such beating;
A's intention to cause B's death.

(b)
A suitor does not bring with him, and have in readiness for production at the first hearing of the case, a bond, on which he relies. This section does not enable him to produce the bond or prove its contents at a subsequent stage of the proceedings, otherwise than in accordance with the conditions prescribed by the [Code of Civil Procedure.]

[Now see the Code of Civil Procedure, 1908 (5 of 1908).]

6.
Relevancy of facts forming part of same transaction.

Facts which, though not in issue, are so connected with a fact in issue as to form part of the same transaction, are relevant whether they occurred at the same time and place or at different times and places.

Illustrations

(a)
A is accused of the murder of B by beating him. Whatever was said or done by A or B or the by-standers at the beating, or so shortly before or after it as to form part of the transaction, is a relevant fact.

(b)
A is accused of waging war against the [Government of India]
[Substituted by A.O. 1950, for "Queen".]
by taking part in an armed insurrection in which property is destroyed, troops are attacked, and goals are broken open. The occurrence of these facts is relevant, as forming part of the general transaction, though A may not have been present at all of them.

(c)
A sues B for a libel contained in a letter forming part of a correspondence. Letters between the parties relating to the subject out of which the libel arose, and forming part of the correspondence in which it is contained, are relevant facts, though they do not contain the libel itself.

(d)
The question is, whether certain goods ordered from B were delivered to A. The goods were delivered to several intermediate persons successively. Each delivery is a relevant fact.

7.
Facts which are the occasion, cause or effect of facts in issue.

Facts which are the occasion, cause or effect, immediate or otherwise, of relevant facts, or facts in issue, or which constitute the state of things under which they happened, or which afforded an opportunity for their occurrence or transaction, are relevant.

Illustrations

(a)
The question is, whether A robbed B.
The facts that, shortly before the robbery, B went to a fair with money in his possession, and that he showed it, or mentioned the fact that he had it, to third persons are relevant.

(b)
The question is, whether A murdered B.
Marks on the ground, produced by a struggle at or near the place where the murder was committed, are relevant facts.

(c)
The question is, whether A poisoned B.
The state of B's health before the symptoms ascribed to poison, and habits of B, known to A which afforded an

opportunity for the administration of poison, are relevant facts.

8.

Motive, preparation and previous or subsequent conduct.

Any fact is relevant which shows or constitutes a motive or preparation for any fact in issue or relevant fact.

The conduct of any party, or of any agent to any party, to any suit or proceeding, in reference to such suit or proceeding, or in reference to any fact in issue or relevant thereto, and the conduct of any person an offence against whom is the subject of any proceeding is relevant, if such conduct influences or is influenced by any fact in issue or relevant fact, and whether it was previous or subsequent thereto.

Explanation 1. - The word "conduct" in this section does not include statements; unless those statements accompany and explain acts other than statements; but this explanation is not to affect the relevancy of statements under any other section of this Act.

Explanation 2. - When the conduct of any person is relevant, any statement made to him or in his presence and hearing, which affects such conduct, is relevant.

Illustrations

(a)

A is tried for the murder of B.

The facts that A murdered C, that B knew that A had murdered C, and that B had tried to extort money from A by threatening to make his knowledge public, are relevant.

(b)

A sues B upon a bond for the payment of money. B denies the making of a bond.

The fact that, at the time when the bond was alleged to be made, B required money for a particular purpose, is relevant.

(c)

A is tried for the murder of B by poison.

The fact that, before the death of B, A procured poison similar to that which was administered to B, is relevant.

(d)

The question is, whether certain document is the will of A.

The facts that, not long before the date of alleged will, A made inquiry into matter to which the provisions of the alleged will relate; that he consulted vakils in reference to making the will, and that he caused drafts of other wills to be prepared of which he did not approve, are relevant.

(e)

A is accused of a crime.

The facts that, either before or at the time of, or after the alleged crime, A provided evidence which would tend to give to the facts of the case an appearance favourable to himself, or that he destroyed or concealed evidence, or prevented the presence or procured the absence of persons who might have been witnesses, or, suborned persons to give false evidence respecting it, are relevant.

(f)

The question is, whether A robbed B.

The facts that, after B was robbed, C said in A's presence - "the police are coming to look for the man who robbed B", and that immediately afterwards A ran away, are relevant.

(g)

The question is, whether A owes B Rs. 10,000.

The facts that A asked C to lend him money, and that D said to C in A's presence and hearing - "I advise you not to trust A, for he owes B 10,000 rupees," and that A went without making any answer, are relevant facts.

(h)

The question is, whether A committed a crime.

The fact that A absconded after receiving a letter warning him that inquiry was being made for the criminal, and the contents of the letter, are relevant.

(i)

A is accused of a crime.

The facts that, after commission of the alleged crime, he absconded, or was in possession of property or the proceeds of property acquired by the crime, or attempted to conceal things which were or might have been used in committing it, are

relevant.

(j)

The question is, whether A was ravished.

The facts that, shortly after the alleged rape, she made a complaint relating to the crime, the circumstances under which, and terms in which, the complaint was made, are relevant.

The fact that, without making a complaint, she said that she had been ravished is not relevant as conduct under this section, though it may be relevant,

as a dying declaration under section 32, clause (1),

or as corroborative evidence under section 157.

(k)

The question is, whether A was robbed.

The fact that, soon after the alleged robbery, he made a complaint relating to the offence, the circumstances under which, and the terms in which, the complaint was made, are relevant.

The fact that he said he had been robbed, without making any complaint, is not relevant, as conduct under this section, though it may be relevant;

as a dying declaration under section 32, clause (1), or

as corroborative evidence under section 157.

9.

Facts necessary to explain or introduce relevant facts.

Facts necessary to explain or introduce a fact in issue or relevant fact, or which support or rebut an inference suggested by a fact in issue or relevant fact, or which establish the identity of any thing or person whose identity is relevant, or fix the time or place at which any fact in issue or relevant fact happened, or which show the relation of parties by whom any such fact was transacted, are relevant in so far as they are necessary for that purpose.

Illustrations

(a)

The question is, whether a given document is the will of A.

The state of A's property and of his family at the date of the alleged will may be relevant facts.

(b)

A sues B for a libel imputing disgraceful conduct to A; B affirms that the matter alleged to be libelous is true.

The position and relations of the parties at the time when the libel was published may be relevant facts as introductory to the facts in issue.

The particulars of a dispute between A and B about a matter unconnected with the alleged libel are irrelevant, though the fact that there was a dispute may be relevant if it affected the relations between A and B.

(c)

A is accused of a crime.

The fact that, soon after the commission of the crime, A absconded from his house, is relevant under section 8, as conduct subsequent to and affected by facts in issue.

The fact that, at the time when he left home, he had sudden and urgent business at the place to which he went, is relevant, as tending to explain the fact, that he left home suddenly.

The details of the business on which he left are not relevant, except in so far as they are necessary to show that the business was sudden and urgent.

(d)

A sues B for inducing C to break a contract of service made by him with A. C, on leaving A's service, says to A - "I am leaving you because B has made me a better offer". This statement is a relevant fact as explanatory of C's conduct, which is relevant as a fact in issue.

(e)

A, accused of theft, is seen to give the stolen property to B, who is seen to give it to A's wife. B says as he delivers it - "A says you are to hide this". B's statement is relevant as explanatory of a fact which is part of the transaction.

(f)

A is tried for a riot and is proved to have marched at the head of a mob. The cries of the mob are relevant as explanatory of the nature of the transaction.

10.

Things said or done by conspirator in reference to common design.

Where there is reasonable ground to believe that two or more persons have conspired together to commit an offence or an actionable wrong, anything said, done or written by any one of such persons in reference to their common intention, after the time when such intention was first entertained by any one of them, is a relevant fact as against each of the persons believed to be so conspiring, as well for the purpose of proving the existence of the conspiracy as for the purpose of showing that any such person was a party to it.

Illustrations

Reasonable ground exists for believing that A has joined in conspiracy to wage war against the [Government of India] [Substituted by A.O. 1950, for "Queen".]

The facts that B procured arms in Europe for the purpose of the conspiracy, C collected money in Calcutta for a like object, D persuaded persons to join the conspiracy in Bombay, E published writings advocating the object in view at Agra, and F transmitted from Delhi to G at Kabul the money which C had collected at Calcutta, and the contents of a letter written by H giving an account of the conspiracy, are each relevant, both to prove the existence of the conspiracy, and to prove A's complicity in it, although he may have been ignorant of all of them, and although the persons by whom they were done were strangers to him, and although they may have taken place before he joined the conspiracy or after he left it.

11.

When facts not otherwise relevant become relevant.

Facts not otherwise relevant are relevant -

(1)

if they are inconsistent with any fact in issue or relevant fact;

(2)

if by themselves or in connection with other facts they make the existence or non-existence of any fact in issue or relevant fact highly probable or improbable.

Illustrations

(a)

The question is, whether A committed a crime at Calcutta on a certain day.

The fact that, on that day, A was at Lahore is relevant.

The fact that, near the time when the crime was committed, A was at a distance from the place where it was committed, which would render it highly improbable, though not impossible, that he committed it, is relevant.

(b)

The question is, whether A committed a crime.

The circumstances are such that the crime must have been committed either by A, B, C or D. Every fact which shows that the crime could have been committed by no one else, and that it was not committed by either B, C or D, is relevant.

12.

In suits for damages, facts tending to enable Court to determine amount are relevant.

In suits in which damages are claimed, any fact which will enable the Court to determine the amount of damages which ought to be awarded, is relevant.

13.

Facts relevant when right or custom is in question.

Where the question is as to the existence of any right or custom, the following facts are relevant -

(a)

Any transaction by which the right or custom, in question, was created, claimed, modified, recognised, asserted or denied, or which was inconsistent with its existence;

(b)

Particular instances in which the right or custom was claimed, recognised or exercised, or in which its exercise was disputed, asserted or departed from.

Illustration

The question is whether A has a right to a fishery. A deed conferring the fishery on A's ancestors, a mortgage of the fishery by A's father, a subsequent grant of the fishery by A's father, irreconcilable with the mortgage, particular

instances in which A's father exercised the right, or in which the exercise of right was stopped by A's neighbours, are relevant facts.

14.

Facts showing existence of state of mind, or of body or bodily feeling.

Facts showing the existence of any state of mind, such as intention, knowledge, good faith, negligence, rashness, ill-will or good-will towards any particular person, or showing the existence of any state of body or bodily feeling, are relevant, when the existence of any such state of mind or body or bodily feeling is in issue or relevant.

[Explanation 1. - A fact relevant as showing the existence of a relevant state of mind must show that the state of mind exists, not generally, but in reference to the particular matter in question.

Explanation 2. - But where, upon the trial of a person accused of an offence the previous commission by the accused of an offence is relevant within the meaning of this section, the previous conviction of such person shall also be relevant fact.]

[Substituted by Act 3 of 1891, Section 1, for the original Explanation.]

Illustrations

(a)

A is accused of receiving stolen goods knowing them to be stolen. It is proved that he was in possession of a particular stolen article.

The fact that, at the same time, he was in possession of many other stolen articles is relevant, as tending to show that he knew each and all of the articles of which he was in possession, to be stolen.

[(b) A is accused of fraudulently delivering to another person a counterfeit coin which, at the time when he delivered it, he knew to be counterfeit.

The fact that, at the time of its delivery, A was possessed of a number of other pieces of counterfeit coin is relevant.

The fact that A had been previously convicted of delivering to another person as genuine a counterfeit coin knowing it to be counterfeit is relevant.]

[Substituted by Act 3 of 1891, Section 1, for the original Illustrations (b).]

(c)

A sues B for damage done by a dog of B's, which B knew to be ferocious.

The facts that the dog had previously bitten X, Y and Z, and that they had made complaints to B, are relevant.

(d)

The question is, whether A, the acceptor of a bill of exchange, knew that the name of the payee was fictitious.

The fact that A had accepted other bills drawn in the same manner before they could have been transmitted to him by the payee if the payee had been a real person, is relevant, as showing that A knew that the payee was a fictitious person.

(e)

A is accused of defaming B by publishing an imputation intended to harm the reputation of B.

The fact of previous publications by A respecting B, showing ill-will on the part of A towards B, is relevant as proving A's intention to harm B's reputation by the particular publication in question.

The facts that there was no previous quarrel between A and B, and that A repeated the matter complained of as he heard it, are relevant, as showing that A did not intend to harm the reputation of B.

(f)

A is sued by B for fraudulently representing to B that C was solvent, whereby B, being induced to trust C, who was insolvent, suffered loss.

The fact that at the time when A represented C to be solvent, C was supposed to be solvent by his neighbours and by persons dealing with him, is relevant, as showing that A made the representation in good faith.

(g)

A is sued by B for the price of work done by B, upon a house of which A is owner, by the order of C, a contractor.

A's defence is that B's contract was with C.

The fact that A paid C for the work in question is relevant, as proving that A did, in good faith, make over to C the management of the work in question, so that C was in a position to contract with B on C's own account, and not as agent for A.

(h)

A is accused of the dishonest misappropriation of property which he had found, and the question is whether, when he appropriated it, he believed in good faith that the real owner could not be found.

The fact that public notice of the loss of the property had been given in the place where A was, is relevant, as showing that A did not in good faith believe that the real owner of the property could not be found.

The fact that A knew, or had reason to believe, that the notice was given fraudulently by C, who had heard of the loss of the property, and wished to set up false claim to it, is relevant, as showing that the fact that A knew of the notice did not disprove A's good faith.

(i)

A is charged with shooting at B with intent to kill him. In order to show A's intent the fact of A's having previously shot at B may be proved.

(j)

A is charged with sending threatening letters to B. Threatening letters previously sent by A to B may be proved, as showing the intention of the letters.

(k)

The question is, whether A has been guilty of cruelty towards B, his wife.

Expressions of their feeling towards each other shortly before or after the alleged cruelty, are relevant facts.

(l)

The question is, whether A's death was caused by poison.

Statements made by A during his illness as to his symptoms, are relevant facts.

(m)

The question is, what was the state of A's health at the time when an assurance on his life was effected.

Statements made by A as to the state of his health at or near the time in question are relevant facts.

(n)

A sues B for negligence in providing him with a carriage for hire not reasonably fit for use, whereby A was injured.

The fact that B's attention was drawn on other occasions to the defect of that particular carriage, is relevant.

The fact that B was habitually negligent about the carriage which he let to hire, is irrelevant.

(o)

A is tried for the murder of B by intentionally shooting him dead.

The fact that A, on other occasions, shot at B is relevant, as showing his intention to shoot B.

The fact that A was in the habit of shooting at people with intent to murder them, is irrelevant.

(p)

A is tried for a crime.

The fact that he said something indicating an intention to commit that particular crime, is relevant.

The fact that he said something indicating a general disposition to commit crimes of that class, is irrelevant.

15.

Facts bearing on question whether act was accidental or intentional.

Where there is a question whether an act was accidental or intentional, [or done with a particular knowledge or intention,]

[Inserted by Act 3 of 1891, Section 2.]

the fact that such act formed part of a series of similar occurrences, in each of which the person doing the act was concerned, is relevant.

Illustrations

(a)

A is accused of burning down his house in order to obtain money for which it is insured.

The facts that A lived in several houses successively, each of which he insured, in each of which a fire occurred, and after each of which fires, A received payment from a different insurance office, are relevant, as tending to show that the fires were not accidental.

(b)

A is employed to receive money from the debtors of B. It is A's duty to make entries in a book showing the amounts received by him. He makes an entry showing that on a particular occasion he received less than he really did receive.

The question is, whether this false entry was accidental or intentional.

The facts that other entries made by A in the same book are false, and that the false entry is in each case in favour of A, are relevant.

(c)

A is accused of fraudulently delivering to B a counterfeit rupee.

The question is, whether the delivery of the rupee was accidental.

The facts that, soon before or soon after the delivery to B, A delivered counterfeit rupees to C, D and E are relevant, as showing that the delivery to B was not accidental.

16.

Existence of course of business when relevant.

When there is a question whether a particular act was done, the existence of any course of business, according to which it naturally would have been done, is a relevant fact.

Illustrations

(a)

The question is, whether a particular letter was despatched.

The fact that it was the ordinary course of business for all letters put in a certain place to be carried to the post, and that particular letter was put in that place, are relevant.

(b)

The question is, whether a particular letter reached A.

The facts that it was posted in due course, and was not returned through the Dead Letter Office, are relevant.

Admissions

17.

Admission defined.

An admission is a statement, [oral or documentary or contained in electronic form]

[Substituted by Act

21 of 2000

, Section 92 and Sch.II, for "oral or documentary"]

, which suggests any reference as to any fact in issue or relevant fact, and which is made by any of the persons, and under the circumstances, hereinafter mentioned.

18.

Admission by party to proceeding or his agent; by suitor in representative character; by party interested in subject matter; by person from whom interested derived.

Statements made by a party to the proceeding, or by an agent to any such party, whom the Court, regards, under the circumstances of the case, as expressly or impliedly authorized by him to make them, are admissions.

Statements made by parties to suits, suing or sued in a representative character, are not admissions, unless they were made while the party making them held that character.

Statements made by -

(1)

persons who have any proprietary or pecuniary interest in the subject-matter of the proceeding, and who make the statement in their character of persons so interested, or

(2)

persons from whom the parties to the suit have derived their interest in the subject-matter of the suit, are admissions, if they are made during the continuance of the interest of the persons making the statements.

19.

Admissions by persons whose position must be proved as against party to suit.

Statements made by persons whose position or liability it is necessary to prove as against any party to the suit, are admissions, if such statements would be relevant as against such persons in relation to such position or liability in a suit brought by or against them, and if they are made whilst the person making them occupies such position or is subject to such liability.

Illustrations

A undertakes to collect rents for B.

B sues A for not collecting rent due from C to B.

A denies that rent was due from C to B.

A statement by C that he owed B rent is an admission, and is a relevant fact as against A, if A denies that C did owe rent to B.

20.

Admissions by persons expressly referred to by party to suit.

Statements made by persons to whom a party to the suit has expressly referred for information in reference to a matter in dispute are admissions.

Illustration

The question is, whether a horse sold by A to B is sound.

A says to B - "Go and ask C, C knows all about it." C's statement is an admission.

21.

Proof of admissions against persons making them, and by or on their behalf.

Admissions are relevant and may be proved as against the person who makes them, or his representative-in-interest; but they cannot be proved by or on behalf of the person who makes them or by his representative-in-interest, except in the following cases:

(1)

An admission may be proved by or on behalf of the person making it, when it is of such a nature that, if the person making it were dead, it would be relevant as between third persons under section 32.

(2)

An admission may be proved by or on behalf of the person making it, when it consists of a statement of the existence of any state of mind or body, relevant or in issue, made at or about the time when such state of mind or body existed, and is accompanied by conduct rendering its falsehood improbable.

(3)

An admission may be proved by or on behalf of the person making it, if it is relevant otherwise than as an admission.

Illustrations

(a)

The question between A and B is, whether a certain deed is or is not forged. A affirms that it is genuine, B that it is forged.

A may prove a statement by B that the deed is genuine, and B may prove a statement by A that the deed is forged; but A cannot prove a statement by himself that the deed is genuine, nor can B prove a statement by himself that the deed is forged.

(b)

A, the captain of a ship, is tried for casting her away.

Evidence is given to show that the ship was taken out of her proper course.

A produces a book kept by him in the ordinary course of his business showing observations alleged to have been taken by him from day to day, and indicating that the ship was not taken out of her proper course. A may prove these statements, because they would be admissible between third parties, if he were dead, under Section 32, clause (2).

(c)

A is accused of a crime committed by him at Calcutta.

He produce a letter written by himself and dated at Lahore on that day, and bearing the Lahore post-mark of that day.

The statement in the date of the letter is admissible, because, if A were dead, it would be admissible, under section 32, clause (2).

(d)

A is accused of receiving stolen goods knowing them to be stolen.

He offers to prove that he refused to sell them below their value.

A may prove these statements, though they are admissions, because they are explanatory of conduct influenced by fact in issue.

(e)

A is accused of fraudulently having in his possession counterfeit coin which he knew to be counterfeit.

He offers to prove that he asked a skilful person to examine the coin as he doubted whether it was counterfeit or not, and that person did examine it and told him it was genuine.

A may prove these facts for the reasons stated in the last preceding Illustration.

22.

When oral admissions as to contents of documents are relevant.

Oral admissions as to the contents of a document are not relevant, unless and until the party proposing to prove them shows that he is entitled to give secondary evidence of the contents of such document under the rules hereinafter contained, or unless the genuineness of a document produced is in question.

22-A. When oral admission as to contents of electronic records are relevant

Oral admissions as to the contents of electronic records are not relevant, unless the genuineness of the electronic record produced is in question.

[Inserted by Act

21 of 2000

, Section 92 and Sch.II (w.e.f. 17.10.2000).]

23.

Admissions in civil cases when relevant.

In civil cases no admission is relevant, if it is made either upon an express condition that evidence of it is not to be given, or under circumstances from which the Court can infer that the parties agreed together that evidence of it should not be given.

Explanation. - Nothing in this section shall be taken to exempt any barrister, pleader, attorney or vakil from giving evidence of any matter of which he may be compelled to give evidence under section 126.

24.

Confession caused by inducement, threat or promise, when irrelevant in criminal proceeding.

A confession made by an accused person is irrelevant in a criminal proceeding, if the making of the confession appears to the Court to have been caused by any inducement, [threat or promise]

[For prohibition of such inducements, etc., see the Code of Criminal Procedure, 1973 (2 of 1974), Section 316.]

, having reference to the charge against the accused person, proceeding from a person in authority and sufficient, in the opinion of the Court, to give the accused person grounds, which would appear to him reasonable for supposing that by making it he would gain any advantage or avoid any evil of a temporal nature in reference to the proceedings against him.

25.

Confession to police officer not to be proved.

No confession made to a [police-officer]

[As to statement made to a police officer investigating a case, see the Code of Criminal Procedure, 1973 (2 of 1974), Section 162.]

shall be proved as against a person accused of any offence.

26.

Confession by accused while in custody of police not to be proved against him.

No confession made by any person whilst he is in the custody of a police-officer, unless it be made in the immediate presence of a [Magistrate]

[A Coroner has been declared to be a Magistrate for the purposes of this section, see the Coroners Act, 1871 (4 of 1871), Section 20.]

, shall be proved as against such person.

[Explanation. - In this section "Magistrate" does not include the head of a village discharging magisterial functions in the presidency of Fort St. George [* * *]

[Inserted by Act 3 of 1891, Section 3.]

or elsewhere, unless such headman is a Magistrate exercising the powers of a Magistrate under the [Code of Criminal Procedure. 1882 (10 of 1882)]

[Now see the Code of Criminal Procedure, 1973 (2 of 1974).]

.]

27.

How much of information received from accused may be proved.

Provided that, when any fact is deposed to as discovered in consequence of information received from a person

accused of any offence, in the custody of a police-officer, so much of such information, whether it amounts to a confession or not, as relates distinctly to the fact thereby discovered, may be proved.

28.
Confession made after removal of impression caused by inducement, threat or promise, relevant.

If such a confession as is referred to in section 24, is made after impression caused by any such inducement, threat or promise has, in the opinion of the Court, been fully removed, it is relevant.

29.
Confession otherwise relevant not to become irrelevant because of promise of secrecy, etc.

If such a confession is otherwise relevant, it does not become irrelevant merely because it was made under a promise of secrecy, or in consequence of a deception practised on the accused person for the purpose of obtaining it, or when he was drunk, or because it was made in answer to questions which he need not have answered, whatever may have been the form of those questions, or because he was not warned that he was not bound to make such confession, and that evidence of it might be given against him.

30.
Consideration of proved confession affecting person making it and others jointly under trial for same offence.

When more persons than one are being tried jointly for the same offence, and a confession made by one of such persons affecting himself and some other of such persons is proved, the Court may take into consideration such confession as against such other person as well as against the person who makes such confession.

[Explanation. - "Offence" as used in this section, includes the abetment of, or attempt to commit, the offence.]

[Inserted by Act 3 of 1891, Section 4.]

Illustrations

(a)
A and B are jointly tried for the murder of C. It is proved that A said - "B and I murdered C".
The Court may consider the effect of this confession as against B.

(b)
A is on his trial for the murder of C. There is evidence to show that C was murdered by A and B and that B said - "A and I murdered C".
This statement may not be taken into consideration by the Court against A, as B is not being jointly tried.

31.
Admissions not conclusive proof, but may estop.

Admissions are not conclusive proof of the matters admitted, but they may operate as estoppels under the provisions hereinafter contained.

Statement By Persons Who Cannot Be Called As Witnesses

32.
Cases in which statement of relevant fact by person who is dead or cannot be found, etc., is relevant.

Statements, written or verbal, or relevant facts, made by a person who is dead, or who cannot be found, or who has become incapable of giving evidence, or whose attendance cannot be procured, without an amount of delay or expense which under the circumstances of the case appears to the Court unreasonable, are themselves relevant facts in the following cases :

(1)
When it relates to cause of death. - When the statement is made by a person as to the cause of his death, or as to any of the circumstances of the transaction which resulted in his death, in cases in which the cause of that person's death comes into question.

Such statements are relevant whether the person who made them was or was not, at the time when they were made, under expectation of death, and whatever may be the nature of the proceeding in which the cause of his death comes into question.

(2)
Or is made in course of business. - When the statement was made by such person in the ordinary course of business, and in particular when it consists of any entry or memorandum made by him in books kept in the ordinary course of business, or in the discharge of professional duty; or of an acknowledgement written or signed by him of the receipt of money, goods, securities or property of any kind; or of a document used in commerce written or signed by him, or of the

date of a letter or other document usually dated, written or signed by him.

(3)

Or against interest of maker. - When the statement is against the pecuniary or proprietary interest of the person making it, or when, if true, it would expose him, or would have exposed him to a criminal prosecution or to a suit for damages.

(4)

Or gives opinion as to public right or custom, or matters of general interest. - When the statement gives the opinion of any person, as to the existence of any public right or custom or matter of public or general interest, of the existence of which, if it existed, he would have been likely to be aware, and when such statement was made before any controversy as to such right, custom or matter had arisen.

(5)

Or relates to existence of relationship. - When the statement relates to the existence of any relationship by blood, marriage or adoption between persons as to whose relationship by blood, marriage or adoption the person making the statement had special means of knowledge, and when the statement was made before the question in dispute was raised.

(6)

Or is made in will or deed relating to family affairs. - When the statement relates to the existence of any relationship [by blood, marriage or adoption]

[Inserted by Act 18 of 1872, Section 2.]

between persons deceased, and is made in any will or deed relating to the affairs of the family to which any such deceased person belonged, or in any family pedigree, or upon any tombstone, family portrait or other thing on which such statements are usually made, and when such statement was made before the question in dispute was raised.

(7)

Or in document relating to transaction mentioned in section 13, clause (a). - When the statement is contained in any deed, will or other document which relates to any such transaction as is mentioned in section 13, clause (a).

(8)

Or is made by several persons and expresses feelings relevant to matter in question. - When the statement was made by a number of persons, and expressed feelings or impressions on their part relevant to the matter in question.

Illustrations

(a)

The question is, whether A was murdered by B; or

A dies of injuries received in a transaction in the course of which she was ravished. The question is, whether she was ravished by B; or

The question is, whether A was killed by B under such circumstances that a suit would lie against B by A's widow.

Statements made by A as to the cause of his or her death, referring respectively to the murder, the rape, and the actionable wrong under consideration are relevant facts.

(b)

The question is, as to the date of A's birth.

An entry in the diary of a deceased surgeon, regularly kept in the course of business, stating that, on a given day, he attended A's mother and delivered her of a son, is a relevant fact.

(c)

The question is, whether A was in Calcutta on a given day.

A statement in the diary of a deceased solicitor, regularly kept in the course of business, that on a given day, the solicitor attended A at a place mentioned, in Calcutta, for the purpose of conferring with him upon specified business, is a relevant fact.

(d)

The question is, whether a ship sailed from Bombay harbour on a given day.

A letter written by a deceased member of a merchant's firm, by which she was chartered to their correspondents in London to whom the cargo was consigned, stating that the ship sailed on a given day from Bombay harbour, is a relevant fact.

(e)

The question is, whether rent was paid to A for certain land.

A letter from A's deceased agent to A, saying that he had received the rent on A's account and held it at A's orders, is a relevant fact.

(f)

The question is, whether A and B were legally married.

The statement of a deceased clergyman that he married them under such circumstances that the celebration would be a crime, is relevant.

(g)

The question is, whether A, a person who cannot be found, wrote a letter on a certain day.

The fact that a letter written by him is dated on that day, is relevant.

(h)

The question is, what was the cause of the wreck of a ship.

A protest made by the Captain, whose attendance cannot be procured, is a relevant fact.

(i)

The question is whether a given road is a public way.

A statement by A, a deceased headman of the village, that the road was public, is a relevant fact.

(j)

The question is, what was the price of grain on a certain day in a particular market.

A statement of the price, made by a deceased baniya in the ordinary course of his business, is a relevant fact.

(k)

The question is, whether A, who is dead, was the father of B.

A statement by A that B was his son, is a relevant fact.

(l)

The question is, what was the date of the birth of A.

A letter from A's deceased father to a friend, announcing the birth of A on given day, is a relevant fact.

(m)

The question is, whether, and when, A and B were married.

An entry in a memorandum-book by C, the deceased father of B, of his daughter's marriage with A on a given date, is a relevant fact.

(n)

A sues B for a libel expressed in a painted caricature exposed in a shop window.

The question is as to similarity of the caricature and its libellous character. The remarks of a crowd of spectators on these points may be proved.

33.

Relevancy of certain evidence for proving, in subsequent proceeding, the truth of facts therein stated.

Evidence given by a witness in a judicial proceeding, or before any person authorised by law to take it, is relevant for the purpose of proving, in a subsequent judicial proceeding, or in a later stage of the same judicial proceeding, the truth of the facts which it states, when the witness is dead, or cannot be found, or is incapable of giving evidence, or is kept out of the way by the adverse party, or if his presence cannot be obtained without an amount of delay or expense which under the circumstances of the case, the Court considers unreasonable :

Provided that the proceeding was between the same parties or their representatives in interest;

that the adverse party in the first proceeding had the right and opportunity to cross-examine;

that the questions in issue were substantially the same in the first as in the second proceeding.

Explanation. - A criminal trial or inquiry shall be deemed to be a proceeding between the prosecutor and the accused within the meaning of this section.

Statements Made Under Special Circumstances

34.

[Entries in books of accounts including those maintained in an electronic form]

[Substituted by Act

21 of 2000

, Section 92 and Sch.II, for "Entries in the books of account" (w.e.f. 17.10.2000)]

, when relevant.

[Entries in books of accounts, including those maintained in an electronic form]

[Substituted by Act

21 of 2000

, Section 92 and Sch.II, for "Entries in the books of account" (w.e.f. 17.10.2000)]

, regularly kept in the course of business, are relevant whenever they refer to a matter into which the Court has to inquire, but such statements shall not alone be sufficient evidence to charge any person with liability.

Illustration

A sues B for Rs. 1,000 and shows entries in his account-books showing B to be indebted to him to this amount.

The entries are relevant but are not sufficient, without other evidence, to prove the debt.

35.

Relevancy of entry in public [record of an electronic record]

[Substituted by Act

21 of 2000

, Section 92 and Sch.II, for "record" (w.e.f. 17.10.2000).]

, made in performance of duty.

An entry in any public or other official book, register or [record or an electronic record]

[Substituted by Act

21 of 2000

, Section 92 and Sch.II, for "record" (w.e.f. 17.10.2000).]

, stating a fact in issue or relevant fact, and made by a public servant in the discharge of his official duty, or by any other person in performance of a duty specially enjoined by the law of the country in which such book, register or [record or an electronic record]

[Substituted by Act

21 of 2000

, Section 92 and Sch.II, for "record" (w.e.f. 17.10.2000)]

is kept, is itself a relevant fact.

36.

Relevancy of statements in maps, charts and plans.

Statements of facts in issue or relevant facts, made in published maps or charts generally offered for public sale, or in maps or plans made under the authority of [the Central Government or any State Government]

[Substituted by A.O. 1948, for "any Government in British India".]

, as to matters usually represented or stated in such maps, charts or plans are themselves relevant facts.

37.

Relevancy of statement as to fact of public nature, contained in certain Acts or notifications.

When the Court has to form an opinion as to the existence of any fact of a public nature, any statement of it, made in a recital contained in any Act of Parliament [of the United Kingdom or in any [Central Act, Provincial Act, or [a State Act]

[Inserted by A.O. 1950.]

or in a Government notification or notification by the Crown Representative appearing in the Official Gazette or in any printed paper purporting to be the London Gazette or the Government Gazette of any Dominion, colony or possession of His Majesty, is a relevant fact].]

[* * *]

[The Last paragraph omitted by Act 10 of 1914, Section 3 and Sch.II.]

38.

Relevancy of statements as to any law contained in law-books.

When the Court has to form an opinion as to a law of any country, any statement of such law contained in a book purporting to be printed or published under the authority of the Government of such country and to contain any such law, and any report of a ruling of the Courts of such country contained in a book purporting to be report of such rulings, is relevant.

How Much Of A Statement Is To Be Proved

39.

[What evidence to be given when statement forms part of a conversation, document, electronic record, book or series of

letters or papers

[Substituted by Act

21 of 2000

, Section 92 and Sch.II, for Section 39 (w.e.f. 17.10.2000).]

When any statement of which evidence is given forms part of a longer statement, or of a conversation or part of an isolated document, or is contained in a document which forms part of a book, or is contained in part of electronic record or of a connected series of letters or papers, evidence shall be given of so much and no more of the statement, conversation, document, electronic record, book or series of letters or papers as the Court considers necessary in that particular case to the full understanding of the nature and effect of the statement, and of the circumstances under which it was made.]

Judgment Of Courts Of Justice, When Relevant

40.

Previous judgments relevant to bar a second suit or trial.

The existence of any judgment, order or decree which by law prevents any Court from taking cognizance of a suit or holding a trial, is a relevant fact when the question is whether such Court ought to take cognizance of a such suit, or to hold such trial.

41.

Relevancy of certain judgments in probate, etc., jurisdiction.

A final judgment, order or decree of a competent Court, in the exercise of probate, matrimonial, admiralty or insolvency jurisdiction, which confers upon or takes away from any person any legal character, or which declares any person to be entitled to any such character, or to be entitled to any specific thing, not as against any specified person but absolutely, is relevant when the existence of any such legal character, or the title of any such person to any such thing, is relevant. Such judgment, order or decree is conclusive proof - that any legal character which it confers accrued at the time when such judgment, order or decree came into operation; that any legal character, to which it declares any such person to be entitled, accrued to that person at the time when such judgment, order or decree declares it to have accrued to that person; that any legal character which it takes away from any such person ceased at the time from which such judgment, order or decree declared that it had ceased or should cease; and that anything to which it declares any person to be so entitled was the property of that person at the time from which such judgment, order or decree declares that it had been or should be his property.

42.

Relevancy and effect of judgments, orders or decrees, other than those mentioned in section 41.

Judgments, orders or decrees other than those mentioned in section 41, are relevant if they relate to matters of a public nature relevant to the enquiry; but such judgments, orders or decrees are not conclusive proof of that which they state.

Illustration

A sues B for trespass on his land. B alleges the existence of a public right of way over the land, which A denies.

The existence of a decree in favour of the defendant, in a suit by A against C for a trespass on the same land, in which C alleged the existence of the same right of way, is relevant, but it is not conclusive proof that the right of way exists.

43.

Judgments, etc., other than those mentioned in sections 40 to 42, when relevant.

Judgments, orders or decrees, other than those mentioned in sections 40, 41 and 42, are irrelevant, unless the existence of such judgment, order or decree, is a fact in issue or is relevant under some other provisions of this Act.

Illustrations

(a)

A and B separately sue C for a libel which reflects upon each of them. C in each case says that the matter alleged to be libellous is true, and the circumstances are such that it is probably true in each case, or in neither.

A obtains a decree against C for damages on the ground that C failed to make out his justification. The fact is irrelevant as between B and C.

(b)

A prosecutes B for adultery with C, A's wife.

B denies that C is A's wife, but the Court convicts B of adultery.

Afterwards, C is prosecuted for bigamy in marrying B during A's lifetime. C says that she never was A's wife.

The judgment against B is irrelevant as against C.

(c)

A prosecutes B for stealing a cow from him. B is convicted.

A 'afterwards' sues C for the cow, which B had sold to him before his conviction. As between A and C, the judgment against B is irrelevant.

(d)

A had obtained a decree for the possession of land against B. C, B's son, murders A in consequence.

The existence of the judgment is relevant, as showing motive for a crime.

[(e) A is charged with theft and with having been previously convicted of theft. The previous conviction is relevant as a fact in issue.

(f)

A is tried for the murder of B.

The fact that B prosecuted A for libel and that A was convicted and sentenced is relevant under section 8 as showing the motive for the fact in issue.]

[Inserted by Act 3 of 1891, Section 5.]

44.

Fraud or collusion in obtaining judgment, or incompetency of Court, may be proved.

Any party to a suit or other proceeding may show that any judgment, order or decree which is relevant under sections 40, 41 or 42 and which has been proved by the adverse party, was delivered by a court not competent to deliver it, or was obtained by fraud or collusion.

Opinions Of Third Persons, When Relevant

45.

Opinions of experts.

When the Court has to form an opinion upon a point of foreign law, or of science or art, or as to identity of handwriting [or finger impressions]

[Inserted by Act 5 of 1899, Section 3. For discussion in Council as to whether [finger impressions] include [thumb impressions,] see Gazette of India, 1898, Pt. VI, p.24.]

, the opinions upon that point of persons specially skilled in such foreign law, science or art, [or in questions as to identity of handwriting]

[Inserted by Act 18 of 1871, Section 4.]

[or finger-impressions]

[Inserted by Act 5 of 1899, Section 3. For discussion in Council as to whether [Finger impressions] include [thumb impressions,] see Gazette of India, 1898, Pt.VI, p.24.]

are relevant facts.

Such persons are called experts.

Illustrations

(a)

The question is, whether the death of A was caused by poison.

The opinions of experts as to the symptoms produced by the poison by which A is supposed to have died, are relevant.

(b)

the question is, whether A, at the time of doing a certain act, was, by reason of unsoundness of mind, incapable of knowing the nature of the act, or that he was doing what was either wrong or contrary to law.

The opinions of experts upon the question whether the symptoms exhibited by A commonly show unsoundness of mind, and whether such unsoundness of mind usually renders persons incapable of knowing the nature of the acts which they do, or of knowing that what they do is either wrong or contrary to law, are relevant.

(c)

The question is, whether a certain document was written by A. Another document is produced which is proved or admitted to have been written by A.

The opinions of experts on the question whether the two documents were written by the same person or by different persons, are relevant.

45A. Opinion of Examiner of Electronic Evidence.

[Inserted by the Information Technology (Amendment) Act, 2008 (10 of 2009), Section 52(b).]

When in a proceeding, the court has to form an opinion on any matter relating to any information transmitted or stored in any computer resource or any other electronic or digital form, the opinion of the Examiner of Electronic Evidence referred to in Section 79-A of the Information Technology Act 2000 (21 of 2000) is a relevant fact.

Explanation - For the purposes of this Section, an Examiner of Electronic Evidence shall be an expert.]

46.

Facts bearing upon opinions of experts.

Facts, not otherwise relevant, are relevant if they support or are inconsistent with the opinions of experts, when such opinions are relevant.

Illustrations

(a)

The question is, whether A was poisoned by a certain poison.

The fact that other persons, who were poisoned by that poison, exhibited certain symptoms which experts affirm or deny to be the symptoms of that poison, is relevant.

(b)

The question is, whether an obstruction to a harbour is caused by a certain sea-wall.

The fact that other harbours similarly situated in other respects, but where there were no such sea-walls, began to be obstructed at about the same time, is relevant.

47.

Opinion as to handwriting, when relevant.

When the Court has to form an opinion as to the person by whom any document was written or signed, the opinion of any person acquainted with the handwriting of the person by whom it is supposed to be written or signed that it was or was not written or signed by that person, is a relevant fact.

Explanation. - A person is said to be acquainted with the handwriting of another person when he has seen that person write, or when he had received documents purporting to be written by that person in answer to documents written by himself or under his authority and addressed to that person, or when, in the ordinary course of business, documents purporting to be written by that person have been habitually submitted to him.

Illustration

The question is, whether a given letter is in the handwriting of A, a merchant in London.

B is a merchant in Calcutta, who has written letters addressed to A and received letters purporting to be written by him. C is B's clerk, whose duty it was to examine and file B's correspondence. D is B's broker, to whom B habitually submitted the letters purporting to be written by A for the purpose of advising with him thereon.

The opinions of B, C and D on the question whether the letter is in the handwriting of A are relevant, though neither B, C nor D ever saw A write.

47A. Opinion as to [Electronic signature]

[Inserted by Act

21 of 2000

, Section 92 and Sch.II (w.e.f. 17.10.2000).]

where relevant.

When the court has to form an opinion as to the [electronic signature]

[Substituted by the Information Technology (Amendment) Act, 2008, (10 of 2009), Section 52(c)(i), for "Digital Signature"]

of any person, the opinion of the Certifying Authority which has issued the [Electronic Signature Certificate]

[Substituted by the Information Technology (Amendment) Act, 2008 (10 of 2009), Section 52(c)(ii), for "Digital Signature"]

is a relevant fact.]

48.

Opinion as to existence of right or custom, when relevant.

When the Court has to form an opinion as to the existence of any general custom or right, the opinions, as to the existence of such custom or right, of persons who would be likely to know of its existence if it existed, are relevant.

Explanation. - The expression "general custom or right" includes customs or rights common to any considerable class of

persons.

Illustration

The right of the villagers of a particular village to use the water of a particular well is a general right within the meaning of this section.

49.

Opinions as to usages, tenets, etc., when relevant.

When the Court has to form an opinion as to - the usages and tenets of any body of men or family, the constitution and government of any religious or charitable foundation, or the meaning of words or terms used in particular districts or by particular classes of people, the opinions of persons having special means of knowledge thereon, are relevant facts.

50.

Opinion on relationship, when relevant.

When the Court has to form an opinion as to the relationship of one person to another, the opinion, expressed by conduct, as to the existence of such relationship, of any person who, as a member of the family or otherwise, has special means of knowledge on the subject, is a relevant fact:

Provided that such opinion shall not be sufficient to prove a marriage in proceedings under the Indian Divorce Act (4 of 1869

), or in prosecutions under sections 494, 495, 497 or 498 of the Indian Penal Code (45 of 1860).

Illustrations

(a)

The question is, whether A and B were married.

The fact that they were usually received and treated by their friends as husband and wife, is relevant.

(b)

The question is, whether A was the legitimate son of B.

The fact that A was always treated as such by members of the family, is relevant.

51.

Grounds of opinion, when relevant.

Whenever the opinion of any living person is relevant, the grounds on which such opinion is based are also relevant.

Illustration

An expert may give an account of experiments performed by him for the purpose of forming his opinion.

Character When Relevant

52.

In civil cases character to prove conduct imputed, irrelevant.

In civil cases, the fact that the character of any person concerned is such as to render probable or improbable any conduct imputed to him, is irrelevant, except in so far as such character appears from facts otherwise relevant.

53.

In criminal cases previous good character relevant.

In criminal proceedings the fact that the person accused is of a good character, is relevant.

53A. Evidence of character or previous sexual experience not relevant in certain cases.

[In a prosecution for an offence under section 354, section 354A, section 354B, section 354C, section 354D, section 376, [section 376A, section 376AB, section 376B, section 376C, section 376D, section 376DA, section 376DB]

[Inserted by Criminal Law (Amendment) Act, 2013]

or section 376E of the Indian Penal Code or for attempt to commit any such offence, where the question of consent is in issue, evidence of the character of the victim or of such person's previous sexual experience with any person shall not be relevant on the issue of such consent or the quality of consent.]

54.

[Previous bad character not relevant, except in reply.

[Substituted by Act 3 of 1891, Section 6, for the original section.]

In criminal proceedings the fact that the accused person has a bad character is irrelevant, unless evidence has been given that he has a good character, in which case it becomes relevant.

Explanation 1. - This section does not apply to cases in which the bad character of any person is itself a fact in issue.

Explanation 2. - A previous conviction is relevant as evidence of bad character.]

55.

Character as affecting damages.

In civil cases, the fact that the character of any person is such as to affect the amount of damages which he ought to receive, is relevant.

Explanation. - In sections 52, 53, 54 and 55 the word "character" includes both reputation and disposition; but [except as provided in section 54]

[Inserted by Act 3 of 1891, Section 7.]

, evidence may be given only of general reputation and general disposition, and not of particular acts by which reputation or disposition were shown.

Part II ? On Proof

Chapter III

Facts Which Need Not Be Proved

56.

Facts judicially noticeable need not be proved.

No fact of which the Court will take judicial notice need be proved.

57.

Facts of which Court must take judicial notice.

The Court shall take judicial notice of the following facts :

(1)

[All laws in force in the territory of India;]

[Substituted by A.O. 1950, for the former para.]

(2)

All public Acts passed or hereafter to be passed by Parliament [of the United Kingdom]

[Inserted by A.O. 1950.]

, and all local and personal Acts directed by Parliament [of the United Kingdom]

[Inserted by A.O. 1950.]

to be judicially noticed;

(3)

Articles of War for [the Indian]

[Substituted by A.O. 1950, for "Her Majesty's".]

Army, [Navy or Air Force]

[Substituted by Act 10 of 1927, Section 2 and Sch.I, for "or Navy".]

;

(4)

[The course of proceeding of Parliament of the United Kingdom, of the Constituent Assembly of India, of Parliament and of the Legislature established under any laws for the time being in force in a Province or in the State]

[Substituted by A.O. 1950, for the former para (4).]

;

(5)

The accession and the sign manual of the Sovereign for the time being of the United Kingdom of Great Britain and Ireland;

(6)

All seals of which English Courts take judicial notice; the seals of all the Courts in India and of all Courts out of [India]

[Substituted by Act 3 of 1951, Section 3 and Sch., for "the States".]

established by the authority of the [Central Government or the Crown Representative]

[Substituted by A.O. 1937, for "the G.G. or any L.G. in Council".]

; the seals of Courts of Admiralty and Maritime Jurisdiction and of Notaries Public, and all seals which any person is authorised to use by [the Constitution or an Act of Parliament of the United Kingdom or an]

[Substituted by A.O. 1950, for "any Act of Parliament or other".]

Act or Regulation having the force of law in [India]

[Substituted by Act 3 of 1951, Section 3 and Sch., for "the states".]

;

(7)

The accession to office, names, titles, functions and signatures of the persons filling for the time being any public office in any State, if the fact of their appointment to such office is notified in [any Official Gazette"

[Substituted by A.O. 1937, for "the Gazette of India or in the Official Gazette of any L.G..]

;

(8)

The existence of title, and National Flag of every State of Sovereign recognized by [the Government of India]

[Substituted by A.O. 1950, for the [the British Crown].]

;

(9)

The divisions of time, the geographical divisions of the world, and public festivals, fasts and holidays notified in the Official Gazette;

(10)

The territories under the dominion of [the Government of India]

[Substituted by A.O. 1950, for "the British Crown".]

;

(11)

The commencement, continuance and termination of hostilities between [the Government of India]

[Substituted by A.O.1950, for "the British Crown".]

and any other State or body of persons;

(12)

The names of the members and officers of the Court and of their deputies and subordinate officers and assistants, and also of all officers acting in execution of its process, and of all advocates, attorneys, proctors, vakils, pleaders and other persons authorised by law to appear or act before it;

(13)

The rule of the road [on land or at sea]

[Inserted by Act 18 of 1872, Section 5.]

.

In all these cases, and also on all matters of public history, literature, science or art, the Court may resort for its aid to appropriate books or documents of reference.

If the Court is called upon by any person to take judicial notice of any fact, it may refuse to do so unless and until such person produces any such book or document as it may consider necessary to enable it to do so.

58.

Facts admitted need not be proved.

No fact need be proved in any proceeding which the parties thereto or their agents agree to admit at the hearing, or which, before the hearing, they agree to admit by any writing under their hands, or which by any rule or pleading in force at the time they are deemed to have admitted by their pleadings:

Provided that the Court may, in its discretion, require the facts admitted to be proved otherwise than by such admissions.

Chapter IV

Of Oral Evidence

59.

Proof of facts by oral evidence.

All facts, except the [contents of documents or electronic records]

[Substituted by Act

21 of 2000

, Section 92 and Sch.II,for "contents of document"(w.e.f. 17.10.2000).]

, may be proved by oral evidence.

60.

Oral evidence must be direct.

Oral evidence must, in all cases, whatever, be direct; that is to say, -

If it refers to a fact which could be seen, it must be the evidence of a witness who says he saw it;

If it refers to a fact which could be heard, it must be the evidence of a witness who says he heard it;

If it refers to a fact which could be perceived by any sense or in any other manner, it must be the evidence of a witness who says he perceived it by that sense or in that manner;

If it refers to an opinion or to the grounds on which that opinion is held, it must be the evidence of the person who holds that opinion on those grounds :

Provided that the opinions of experts expressed in any treatise commonly offered for sale, and the grounds on which such opinions are held, may be proved by the production of such treatises if the author is dead or cannot be found, or has become incapable of giving evidence, or cannot be called as a witness without an amount of delay or expense which the Court regards as unreasonable.

Provided also that, if oral evidence refers to the existence or condition of any material thing other than a document, the Court may, if it thinks fit, require the production of such material thing for its inspection.

Chapter V

Of Documentary Evidence

61.

Proof of contents of documents.

The contents of documents may be proved either by primary or by secondary evidence.

62.

Primary Evidence.

Primary evidence means the documents itself produced for inspection of the Court.

Explanation 1. - Where a document is executed in several parts each part is primary evidence of the document :

Where a document, is executed in counterpart, each counterpart being executed by one or some of the parties only, each counterpart is primary evidence as against the parties executing it.

Explanation 2. - Where a number of documents are all made by one uniform process, as in the case of printing, lithography or photography, each is primary evidence of the contents of the rest; but, where they are all copies of a common original, they are not primary evidence of the contents of the original.

Illustration

A person is shown to have been in possession of a number of placards, all printed at one time from one original. Any one of the placards is primary evidence of the contents of any other, but no one of them is primary evidence of the contents of the original.

63.

Secondary evidence.

Secondary evidence means and includes -

(1)

[certified copies given under the provisions hereinafter contained;]

[See Section 76,infra.]

(2)

copies made from the original by the mechanical processes which in themselves insure the accuracy of the copy, and copies compared with such copies;

(3)

copies made from or compared with the original;

(4)

counterparts of documents as against the parties who did not execute them;

(5)

oral accounts of the contents of a document given by some person who has himself seen it.

Illustrations

(a)

A photograph of an original is secondary evidence of its contents though the two have not been compared, if it is proved that the thing photographed was the original.

(b)

A copy compared with a copy of a letter made by a copying machine is secondary evidence of the contents of the letter, if it is shown that the copy made by the copying machine was made from the original.

(c)

A copy transcribed from a copy, but afterwards compared with the original, is secondary evidence; but the copy not so compared is not secondary evidence of the original although the copy from which it was transcribed was compared with the original.

(d)

Neither an oral account of a copy compared with the original nor an oral account of a photograph or a machine copy of the original, is secondary evidence of the original.

64.

Proof of documents by primary evidence.

Documents must be proved by primary evidence except in the cases hereinafter mentioned.

65.

Cases in which secondary evidence relating to document may be given.

Secondary evidence may be given of the existence, condition or contents of a document in the following cases :

(a)

When the original is shown or appears to be in the possession or power of the person against whom the document is sought to be proved, or of any person out of reach of, or not subject to, the process of the Court, or of any person legally bound to produce it, and when, after the notice mentioned in section 66, such person does not produce it;

(b)

When the existence, condition or contents of the original have been proved to be admitted in writing by the person against whom it is proved or by his representative in interest;

(c)

When the original has been destroyed or lost, or when the party offering evidence of its contents cannot, for any other reason not arising from his own default or neglect, produce it in reasonable time;

(d)

When the original is of such a nature as not to be easily movable;

(e)

When the original is a public document within the meaning of section 74;

(f)

[When the original is a document of which a certified copy is permitted by this Act, or by any other law in force in [India] [[Cf. the Bankers'Books Evidence Act, 1891 (18 of 1891

), Section 4.]], to be given in evidence;

(g)

When the originals consist of numerous accounts or other documents which cannot conveniently be examined in Court, and the fact to be proved is the general result of the whole collection.

In cases (a), (c) and (d), any secondary evidence of the contents of the documents is admissible.

In case (b), the written admission is admissible.

In case (e) or (f), a certified copy of document, but no other kind of secondary evidence, is admissible.

In case (g), evidence may be given as to the general result of the documents by any person who has examined them, and who is skilled in the examination of such documents.

65A. Special provisions as to evidence relating to electronic record.

[Inserted by Act

21 of 2000

, Section 92 and Sch.II (w.e.f. 17.10.2000).]

The contents of electronic records may be proved in accordance with the provisions of section 65B.

65B. Admissibility of electronic records.

(1)

Notwithstanding anything contained in this Act, any records. information contained in an electronic record which is printed on a paper, stored, recorded or copied in optical or magnetic media produced by a computer (hereinafter

referred to as the computer output) shall be deemed to be also a document, if the conditions mentioned in this section are satisfied in relation to the information and computer in question and shall be admissible in any proceedings, without further proof or production of the original, as evidence of any contents of the original or of any fact stated therein of which direct evidence would be admissible.

(2)

The conditions referred to in sub-section (1) in respect of a computer output shall be the following, namely:-

(a)

the computer output containing the information was produced by the computer during the period over which the computer was used regularly to store or process information for the purposes of any activities regularly carried on over that period by the person having lawful control over the use of the computer;

(b)

during the said period, information of the kind contained in the electronic record or of the kind from which the information so contained is derived was regularly fed into the computer in the ordinary course of the said activities;

(c)

throughout the material part of the said period, the computer was operating properly or, if not, then in respect of any period in which it was not operating properly or was out of operation during that part of the period, was not such as to affect the electronic record or the accuracy of its contents; and

(d)

the information contained in the electronic record reproduces or is derived from such information fed into the computer in the ordinary course of the said activities.

(3)

Where over any period, the function of storing or processing information for the purposes of any activities regularly carried on over that period as mentioned in clause (a) of sub-section (2) was regularly performed by computers, whether-

(a)

by a combination of computers operating over that period; or

(b)

by different computers operating in succession over that period; or

(c)

by different combinations of computers operating in succession over that period; or

(d)

in any other manner involving the successive operation over that period, in whatever order, of one or more computers and one or more combinations of computers.

all the computers used for that purpose during that period shall be treated for the purposes of this section as constituting a single computer; and references in this section to a computer shall be construed accordingly.

(4)

In any proceedings where it is desired to give a statement in evidence by virtue of this section, a certificate doing any of the following things, that is to say,-

(a)

identifying the electronic record containing the statement and describing the manner in which it was produced;

(b)

giving such particulars of any device involved in the production of that electronic record as may be appropriate for the purpose of showing that the electronic record was produced by a computer;

(c)

dealing with any of the matters to which the conditions mentioned in sub-section (2) relate, and purporting to be signed by a person occupying a responsible official position in relation to the operation of the relevant device or the management of the relevant activities (whichever is appropriate) shall be evidence of any matter stated in the certificate; and for the purposes of this sub-section it shall be sufficient for a matter to be stated to the best of the knowledge and belief of the person stating it.

(5)

For the purposes of this section,-

(a)

information shall be taken to be supplied to a computer if it is supplied thereto in any appropriate form and whether it is so supplied directly or (with or without human intervention) by means of any appropriate equipment;

(b)

whether in the course of activities carried on by any official, information is supplied with a view to its being stored or processed for the purposes of those activities by a computer operated otherwise than in the course of those activities, that information, if duly supplied to that computer, shall be taken to be supplied to it in the course of those activities;

(c)

a computer output shall be taken to have been produced by a computer whether it was produced by it directly or (with or without human intervention) by means of any appropriate equipment.

Explanation. - For the purposes of this section any reference to information being derived from other information shall be a reference to its being derived therefrom by calculation, comparison or any other process.]

66.

Rules as to notice to produce.

Secondary evidence of the contents of the documents referred to in Section 65, clause (a), shall not be given unless the party proposing to give such secondary evidence has previously given to the party in whose possession or power the document is, [or to his attorney or pleader,]

[Inserted by Act 18 of 1872, Section 6.]

such notice to produce it as is prescribed by law; and if no notice is prescribed by law, then such notice as the Court considers reasonable under the circumstances of the case :

Provided that such notice shall not be required in order to render secondary evidence admissible in any of the following cases, or in any other case in which the Court thinks fit to dispense with it :-

(1)

When the document to be proved is itself a notice;

(2)

When, from the nature of the case, the adverse party must know that he will be required to produce it;

(3)

When it appears or is proved that the adverse party has obtained possession of the original by fraud or force;

(4)

When the adverse party or his agent has the original in Court;

(5)

When the adverse party or his agent has admitted the loss of the document;

(6)

When the person in possession of the document is out of reach of, or not subject to, the process of the Court.

67.

Proof of signature and handwriting of person alleged to have signed or written document produced.

If a document is alleged to be signed or to have been written wholly or in part by any person, the signature or the handwriting of so much of the document as is alleged to be in that person's handwriting must be proved to be in his handwriting.

67A. Proof as to [electronic signature]

[Substituted by Information Technology (Amendment) Act, 2008 (10 of 2009), Section 52(d), for "Digital Signature"]

- Except in the case of a secure [electronic signature]

[Substituted by the Information Technology (Amendment) Act, 2008 (10 of 2009), Section 52(d), for "digital signature".]

, if the [electronic signature]

[Substituted by Information Technology (Amendment) Act, 2008 (10 of 2009), Section 52(d), for "Digital Signature"]

of any subscriber is alleged to have been affixed to an electronic record the fact that such [electronic signature]

[Substituted by Information Technology (Amendment) Act, 2008 (10 of 2009), Section 52(d), for "Digital Signature"]

is the [electronic signature]

[Substituted by Information Technology (Amendment) Act, 2008 (10 of 2009), Section 52(d), for "Digital Signature"]

of the subscriber must be proved.]

[Inserted by Act

21 of 2000

, Section b92 and Sch.II (w.e.f. 17.10.2000).]

68.

Proof of execution of document required by law to be attested.

If a document is required by law to be attested, it shall not be used as evidence until one attesting witness at least has been called for the purpose of proving its execution, if there be an attesting witness alive, and subject to the process of the Court and capable of giving evidence :

[Provided that it shall not be necessary to call an attesting witness in proof of the execution of any document, not being a Will, which has been registered in accordance with the provisions of the Indian Registration Act, 1908 (XVI of 1908), unless its execution by the person by whom it purports to have been executed is specifically denied.]

[Inserted by Act 31 of 1926, Section 2.]

69.

Proof where no attesting witness found.

If no such attesting witness can be found, or if the document purports to have been executed in the United Kingdom, it must be proved that the attestation of one attesting witness at least is in his handwriting, and that the signature of the person executing the document is in the handwriting of that person.

70.

Admission of execution by party to attested document.

The admission of a party to an attested document of its execution by himself shall be sufficient proof of its execution as against him, though it be a document required by law to be attested.

71.

Proof when attesting witness denies the execution.

If the attesting witness denies or does not recollect the execution of the document, its execution may be proved by other evidence.

72.

Proof of document not required by law to be attested.

An attested document not required by law to be attested may be proved as if it was unattested.

73.

Comparison of signature, writing or seal with others admitted or proved.

In order to ascertain whether a signature, writing or seal is that of the person by whom it purports to have been written or made, any signature, writing or seal admitted or proved to the satisfaction of the Court to have been written or made by that person may be compared with the one which is to be proved, although that signature, writing or seal has not been produced or proved for any other purpose.

The Court may direct any person present in Court to write any words or figures for the purpose of enabling the Court to compare the words or figures so written with any words or figures alleged to have been written by such person.

[This section applies also, with any necessary modifications, to finger impressions.]

[Inserted by Act 5 of 1899, Section 3.]

73-A. Proof as to verification of digital signature.

In order to ascertain whether a digital signature is that of the person by whom it purports to have been affixed, the Court may direct -

(a)
that person or the Controller or the Certifying Authority to produce the Digital Signature Certificate;

(b)
any other person to apply the public key listed in the Digital Signature Certificate and verify the digital signature purported to have been affixed by that person."

Explanation. : For the purposes of this section, "Controller" means the Controller appointed under sub-section (1) of section 17 of the Information Technology Act, 2000.]

[Inserted by Act

21 of 2000

, Section 92 and Sch.II (w.e.f. 17.10.2000).]

Public Documents

74.

Public documents.

The following documents are public documents :-

(1)

Documents forming the acts or records of the acts -

(i)

of the sovereign authority;

(ii)

of official bodies and tribunals; and

(iii)

of public officers, legislative, judicial and executive, [of any part of India or of the Commonwealth]

[The original words "whether of British India, or of any other part of Her Majesty's dominions" have successively been amended by A.O. 1948 and A.O. 1950 to read as above.]

, or of a foreign country;

(2)

public records kept [in any State]

[Substituted by A.O. 1950, for "in any Province".]

of private documents.

75.

Private documents.

All other documents are private.

76.

Certified copies of public documents.

Every [public officer]

[A Village-officer in the Punjab has been declared for the purposes of this Act to be a public officer having the custody of a public document-see the Punjab Land-Revenue Act, 1887 (17 of 1887), Section 151(2).]

having the custody of a public document, which any person has a right to inspect, shall give that person on demand a copy of it on payment of the legal fees therefor, together with a certificate written at the foot of such copy that it is a true copy of such document or part thereof, as the case may be, and such certificate shall be dated and subscribed by such officer with his name and his official title, and shall be sealed, whenever such officer is authorized by law to make use of a seal; and such copies so certified shall be called certified copies.

Explanation. - Any officer who, by the ordinary course of official duty is authorized to deliver such copies, shall be deemed to have the custody of such documents within the meaning of this section.

77.

Proof of documents by production of certified copies.

Such certified copies may be produced in proof of the contents of the public documents or part of the public documents of which they purport to be copies.

78.

Proof of other official documents.

The following public documents may be proved as follows :

(1)

Acts, orders or notifications of [the Central Government]

[Substituted by A.O. 1937, for "the Executive Government of British India".]

in any of its departments, [or of the Crown Representative]

[Inserted by A.O. 1937.]

or of any State Government or any department of any State Government, - by the records of the departments, certified by the heads of those departments, respectively, or by any document purporting to be printed by order of any such Government or, as the case may be, of the Crown Representative; or by any document purporting to be printed by order of any such Government [or, as the case may be, of the Crown Representative;]

[Inserted by A.O. 1937.]

(2)

The proceedings of the Legislatures, - by the journals of those bodies respectively or by published Acts or abstracts; or by copies purporting to be printed [by order of the Government concerned;]

[Substituted by A.O. 1937, for "by order of Government".]

(3)

Proclamations, orders or regulations issued by [Her Majesty]

[The words "Her Majesty" stand unmodified, vide A.O. 1950.]

or by Privy Council, or by any department of [Her Majesty's]

[The words "Her Majesty" stand unmodified, vide A.O. 1950.]

Government - by copies or extracts contained in the London Gazette, or purporting to be printed by the Queen's Printer;

(4)

The acts of the Executive or the proceedings of the Legislature of a foreign country,- by journals published by their authority, or commonly received in that country as such, or by a copy certified under the seal of the country or sovereign, or by a recognition thereof in some [Central Act]

[Substituted by A.O. 1937, for "public Act of the Governor General of India in Council".]

;

(5)

The proceedings of a municipal body in [a State]

[Substituted by A.O. 1950, for "a Province".]

, - by a copy of such proceedings, certified by the legal keeper thereof or by a printed book purporting to be published by the authority of such body;

(6)

Public documents of any other class in a foreign country, - by the original, or by a copy certified by the legal keeper thereof, with a certificate under seal of a Notary Public, or of [an Indian Consul]

[Substituted by A.O. 1950, for "a British Consul".]

or diplomatic agent, that the copy is duly certified by the officer having the legal custody of the original, and upon proof of the character of the document according to the law of the foreign country.

West Bengal.(Amended by Act 20 of 1960, Section 3, w.e.f. 5.1.1961) After Section 78 insert the following new section:

78-A.Copies of public documents to be as good as original documents in certain cases.

Notwithstanding anything contained in this Act or any other law for the time being in force, where any public documents concerning any areas within West Bengal have been kept in Pakistan, then copies of such public documents, shall, on being authenticated in such manner as may be prescribed from time to time by the State Government by notification in the official Gazette, be deemed to have taken the place of, and to be, the original documents from which such copies were made and all references to the original documents shall be construed as including references to such copies."

Presumptions As To Documents

79.

Presumption as to genuineness of certified copies.

The Court shall presume [to be genuine]

[Inserted by A.O. 1948.]

every document purporting to be a certificate, certified copy or other document, which is by law declared to be admissible as evidence of any particular fact and which purports to be duly certified by any officer [of the Central Government or of a State Government, or by any officer [in the State of Jammu and Kashmir]

[The original words begining from [in British India] and ending with the words "to be genuine" have been successively amended by A.O. 1937, A.O. 1948 and A.O. 1950 to read as above.]

who is duly authorized thereto by the central Government] :

Provided that such document is substantially in the form and purports to be executed in the manner directed by law in that behalf.

The Court shall also presume that any officer by whom any such document purports to be signed or certified held when he signed it, the official character which he claims in such paper.

80.

Presumption as to documents produced as record of evidence.

Whenever any document is produced before any Court purporting to be a record or memorandum of the evidence, or of

any part of the evidence, given by a witness in a judicial proceeding or before any officer authorized by law to take such evidence, or to be a statement or confession by any prisoner or accused person, taken in accordance with law, and purporting to be signed by any Judge or Magistrate, or by any such officer as aforesaid, the Court shall presume - that the document is genuine; that any statement as to the circumstances under which it was taken, purporting to be made by the person signing it, are true, and that such evidence, statement or confession was duly taken.

81.

Presumption as to Gazettes, newspapers, private Acts of Parliament and other documents.

The Court shall presume the genuineness of every document purporting to be the London Gazette or [any official Gazette, or the Government Gazette]

[Substituted by A.O. 1937, for "the Gazette of India, or the Government Gazette of any L.G., or".]

of any colony, dependency or possession of the British Crown, or to be a newspaper or journal, or to be a copy of a private Act of Parliament [of the United Kingdom]

[Inserted by A.O. 1950.]

printed by the Queen's Printer and of every document purporting to be a document directed by any law to be kept by any person, if such document is kept substantially in the form required by law and is produced from proper custody.

81-A. Presumption as to Gazettes in electronic forms.

[Inserted by Act

21 of 2000

, Section 92 and Sch.II (w.e.f. 17.10.200).]

The Court shall presume the genuineness of every electronic record purporting to be the Official Gazette, or purporting to be electronic record directed by any law to be kept by any person, if such electronic record is kept substantially in the form required by law and is produced from proper custody.]

82.

Presumption as to document admissible in England without proof of seal or signature.

When any document is produced before any Court, purporting to be a document which, by the law in force for the time being in England or Ireland, would be admissible in proof of any particular in any Court of Justice in England or Ireland, without proof of the seal or stamp or signature authenticating it, or of the judicial or official character claimed by the person by whom it purports to be signed, the Court shall presume that such seal, stamp or signature is genuine and that the person signing it held, at the time when he signed it, the judicial or official character which he claims, and the document shall be admissible for the same purpose for which it would be admissible in England or Ireland.

83.

Presumption as to maps or plans made by authority of Government.

The Court shall presume that maps or plans purporting to be made by authority of [the Central Government or any State Government]

[The original word "Government" has successively been amended by A.O. 1937, A.O. 1948, Act 40 of 1949 and A.O. 1950 to read as above.]

were so made, and are accurate; but maps or plans made for the purposes of any cause must be proved to be accurate.

84.

Presumption as to collections of laws and reports of decisions.

The Court shall presume the genuineness of every book purporting to be printed or published under the authority of the Government of any country, and to contain any of the laws of that country, and of every book purporting to contain reports of decisions of the Courts of such country.

85.

Presumption as to powers-of-attorney.

The Court shall presume that every document purporting to be a power-of-attorney, and to have been executed before, and authenticated by, a Notary Public, or any Court, Judge, Magistrate, [Indian]

[Substituted by A.O. 1950, for "British".]

Consul or Vice-Consul, or representative [* * *]

[The words "of Her Majesty, or" repealed by A.O. 1950.]

of the [Central Government]

[Substituted by A.O. 1937, for "Government of India".]

, was so executed and authenticated.

85-A. Presumption as to electronic agreements.

[Inserted by Act

21 of 2000

, Section 92 and Sch.II (w.e.f. 17.10.2000).]

The Court shall presume that every electronic record purporting to be an agreement containing the [electronic signatures] of the parties was so concluded by affixing the [electronic signature]

[Substituted by the Information Technology (Amendment) Act, 2008 (10 of 2009), Section 52(e) for "digital signature"] of the parties.

85-B. Presumptions as to electronic records and [electronic Signatures]

[Substituted by the Information Technology (Amendment) Act, 2008 (10 of 2009), Section 52(f) for "digital signature"]

(1)

In any proceedings involving a secure electronic record, the Court shall presume unless contrary is proved, that the secure electronic record has not been altered since the specific point of time to which the secure status relates.

(2)

In any proceedings, involving secure [electronic signatures]

[Substituted by the Information Technology (Amendment) Act, 2008 (10 of 2009), Section 52(f) for "digital signature"]

the Court shall presume unless the contrary is proved that -

(a)

the secure [electronic signature]

[Substituted by the Information Technology (Amendment) Act, 2008 (10 of 2009), Section 52(f) for "digital signature"]

is affixed by subscriber with the intention of signing or approving the electronic record;

(b)

except in the case of a secure electronic record or a secure [electronic signature]

[Substituted by the Information Technology (Amendment) Act, 2008 (10 of 2009), Section 52(f) for "digital signature"]

, nothing in this section shall create any presumption relating to authenticity and integrity of the electronic record or any [electronic signature]

[Substituted by the Information Technology (Amendment) Act, 2008 (10 of 2009), Section 52(f) for "digital signature"]

.

85 C. Presumption as to electronic signature certificates.

[Electronic Signature Certificates]

[Substituted by the Inserted by Information Technology (Amendment) Act, 2008 (10 of 2009), Section 52(g) for "Digital signature Certificate"]

- The Court shall presume, unless contrary is proved, that the information listed in a [electronic signature Certificate]

[Substituted by the Information Technology (Amendment) Act, 2008 (10 of 2009), Section 52(g), for "Digital Singnature Certificate".]

is correct, except for information specified as subscriber information which has not been verified, if the certificate was accepted by the subscriber].

86.

Presumption as to certified copies of foreign judicial records.

The Court may presume that any document purporting to be a certified copy of any judicial records [[* * *]

[Substituted by A.O. 1950, for "any country not forming part".]

any country not forming part of India or of Her Majesty's Dominion is genuine and accurate, if the document purports to be certified in any manner which is certified by any representative of [* * *]

[The words "a Part B State or of" omitted by Act 3 of 1951, Section 3 abnd Sch.]

[the Central Government]

[The words "Her Majesty or of" repealed by A.O. 1950.]

[in or for]

[Substituted by Act 3 of 1891, Section 8, for "resident in".]

[such country]

[Substituted by Act 3 of 1951, Section 3 and Sch., for "such Part B State or Country".]

to be the manner commonly in use in [that country]

[Substituted by Act 3 of 1951, Section 3 and Sch., for "that State of country".]

for the certification of copies of judicial records.

[An officer who, with respect to [* * *]

[Substituted by Act 5 of 1899, Section 4, for the para added by Act 3 of 1891, Section 3.]

any territory or place not forming part of [India or]

[Inserted by A.O. 1950.]

Her Majesty's Dominions, is a Political Agent therefor, as defined in section 3, [clause (43)]

[Substituted by A.O. 1950, for "clause (40)".]

of the General Clauses Act, 1897 (

10 of 1897

) shall, for the purposes of this section, be deemed to be a representative of the [Central Government]

[Substituted by A.O. 1937, for "Government of India".]

[in and for the country comprising that territory or place

[Substituted by Act 3 of 1951, Section 3 and Sch., for "in and for that Part B State or country".]

.]

87.

Presumption as to books, maps and charts.

The Court may presume that any book to which it may refer for information on matters of public or general interest, and that any published map or chart, the statements of which are relevant facts and which is produced for its inspection, was written and published by the person and at the time and place, by whom or at which it purports to have been written or published.

88.

Presumption as to telegraphic messages.

The Court may presume that a message, forwarded from a telegraph office to the person to whom such message purports to be addressed, corresponds with a message delivered for transmission at the office from which the message purports to be sent; but the Court shall not make any presumption as to the person by whom such message was delivered for transmission.

88-A. Presumption as to electronic messages.

[Inserted by Act

21 of 2000

, Section 92 and Sch.II (w.e.f. 17.10.2000).]

The Court may presume that an electronic message forwarded by the originator through an electronic mail server to the addressee to whom the message purports to be addressed corresponds with the message as fed into his computer for transmission; but the court shall not make any presumption as to the person by whom such message was sent".

Explanation : For the purposes of this section, the expressions "addressee" and "originator" shall have the same meanings respectively assigned to them in clauses (b) and (za) of sub-section (1) of section 2 of the Information Technology Act, 2000.]

89.

Presumption as to due execution, etc., of documents not produced.

The Court shall presume that every document, called for and not produced after notice to produce, was attested, stamped, and executed in the manner required by law.

90.

Presumption as to documents thirty years old.

Where any document, purporting or proved to be thirty years old, is produced from any custody which the Court in the particular case considers proper, the Court may presume that the signature and every other part of such document, which purport to be in the handwriting of any particular person, is in that person's handwriting, and, in the case of a document executed or attested, that it was duly executed and attested by the persons by whom it purports to be executed and attested.

Explanation. - Documents are said to be in proper custody if they are in the place in which, and under the care of the person with whom, they would naturally be; but no custody is improper if it proved to have had a legitimate origin, or if

the circumstances of the particular case are such as to render such an origin probable.

This explanation applies also to section 81.

Illustrations

(a)

A has been in possession of landed property for a long time. He produces from his custody deeds relating to the land, showing his titles to it. The custody is proper.

(b)

A produces deeds relating to landed property of which he is the mortgagee. The mortgagor is in possession. The custody is proper.

(c)

A, a connection of B, produces deeds relating to lands in B's possession, which were deposited with him by B for safe custody. The custody is proper.

Uttar Pradesh. - The following amendments have been made in Section 90 and a new Section 90-A has been added vide U.P. Act XXIV of 1954:

"1. The existing section shall be renumbered as Section 90(1), and

(a) For the words "thirty years" the words "twenty years" shall be substituted, and

(b) The following shall be inserted thereafter as a new sub-section (2):

(2) Where any such document as is referred to in sub-section (1) was registered in accordance with the law relating to registration of documents and a duly certified copy thereof is produced, the Court may presume that the signature and every other part of such document which purports to be in the handwriting of any particular person, is in that person's handwriting, and in the case of a document executed or attested, that it was duly executed by the person by whom it purports to have been executed or attested.'

2. After Section 90, add the following as a new Section 90-A:

90A. Presumption as to electronic records five years old.

(1) Where any registered document or a duly certified copy thereof or any certified copy of a document which is part of the record of a court of justice, is produced from any custody which the court in the particular case considers proper, the court may presume that the original was executed by the person by whom it purports to have been executed.

(2) This presumption shall not be made in respect of any document which is the basis of a suit or of a defence or is relied upon in the plaint or written statement.

The explanation to sub-section (1) of Section 90 will also apply to the section."

This Explanation applies also to section 81A.]

[90-A. Presumption as to electronic records five years old.

[Inserted by Act

21 of 2000

, Section 92 and Sch.II (w.e.f. 17.10.200).]

Where any electronic record, purporting or proved to be five years old, is produced from any custody which the Court in the particular case considers proper, the Court may presume that the [electronic signature] which purports to be the [electronic signature]

[Substituted by the Information Technology (Amendment) Act, 2008 (10 of 2009), Section 52(h) for "digital signature"] of any particular person was so affixed by him or any person authorised by him in this behalf.

Explanation : Electronic records are said to be in proper custody if they are in the place in which, and under the care of the person with whom, they naturally be; but no custody is improper if it is proved to have had a legitimate origin, or the circumstances of the particular case are such as to render such an origin probable.

This Explanation applies also to section 81A.]

Chapter VI

Of the exclusion of oral by documentary evidence

91.

Evidence of terms of contracts, grants and other dispositions of property reduced to form of document.

When the terms of a contract, or of a grant, or of any other disposition of property, have been reduced to the form of a document, and in all cases in which any matter is required by law to be reduced to the form of a document, no [evidence]

[Where, however, a Criminal Court finds that a confession or other statement of an accused person has not been recorded in the manner prescribed, evidence may be taken that the recorded statement was duly made-see the Code of Criminal Procedure, 1973 (2 of 1974), Section 463.]

shall be given in proof of the terms of such contract, grant or other disposition of property or of such matter, except the document itself, or secondary evidence of its contents in cases in which secondary evidence is admissible under the provisions hereinbefore contained.

Exception 1. - When a public officer is required by law to be appointed in writing, and when it is shown that any particular person has acted as such officer, the writing by which he is appointed need not be proved.

Exception 2. - Wills [admitted to probate in [India]

[Substituted by Act 18 of 1872, Section 7, for "under the Indian Succession Act".]

] may be proved by the probate.

Explanation 1. - This section applies equally to cases in which the contracts, grants or dispositions of property referred to are contained in one document and to cases in which they are contained in more documents than one.

Explanation 2. - Where there are more originals than one, one original only need be proved.

Explanation 3. - The statement, in any document whatever, or a fact other than the facts referred to in this section, shall not preclude the admission of oral evidence as to the same fact.

Illustrations

(a)

If a contract be contained in several letters, all the letters in which it is contained must be proved.

(b)

If a contract is contained in a bill of exchange, the bill of exchange must be proved.

(c)

If a bill of exchange is drawn in a set of three, one only need be proved.

(d)

A contracts, in writing, with B, for the delivery of indigo upon certain terms. The contract mentions the fact that B had paid A the price of other indigo contracted for verbally on another occasion.

Oral evidence is offered that no payment was made for other indigo. The evidence is admissible.

(e)

A gives B a receipt for money paid by B.

Oral evidence is offered of the payment.

The evidence is admissible.

92.

Exclusion of evidence of oral agreement.

When the terms of any such contract, grant or other disposition of property, or any matter required by law to be reduced to the form of a document, have been proved according to the last section, no evidence of any oral agreement or statement shall be admitted, as between the parties to any such instrument or their representatives in interest, for the purpose of contradicting, varying, adding to or subtracting from, its terms :

Proviso (1). - Any fact may be proved which would invalidate any document, or which would entitle any person to any decree or order relating thereto; such as fraud, intimidation, illegality, want of due execution, want of capacity in any contracting party, [want or failure]

[Substituted by Act 18 of 1872, Section 8, for "want of failure".]

of consideration, or mistake in fact or law.

Proviso (2). - The existence of any separate oral agreement as to any matter on which a document is silent, and which is not inconsistent with its terms, may be proved. In considering whether or not this proviso applies, the Court shall have regard to the degree of formality of the document.

Proviso (3). - The existence of any separate oral agreement, constituting a condition precedent to the attaching of any obligation under any such contract, grant or disposition of property, may be proved.

Proviso (4). - The existence of any distinct subsequent oral agreement to rescind or modify any such contract, grant or disposition of property, may be proved except in cases in which such contract, grant or disposition of property is by law required to be in writing, or has been registered according to the law in force for the time being as to the registration of documents.

Proviso (5). - Any usage or custom by which incidents not expressly mentioned in any contract are usually annexed to contracts of that description, may be proved :

Provided that the annexing of such incident would not be repugnant to, or inconsistent with, the express terms of the contract.

Proviso (6). - Any fact may be proved which shows in what manner the language of a document is related to existing facts.

Illustrations

(a)

A policy of insurance is effected on goods "in ships from Calcutta to London". The goods are shipped in a particular ship which is lost. The fact that particular ship was orally excepted from the policy, cannot be proved.

(b)

A agrees absolutely in writing to pay B Rs. 1,000 on the first March, 1873. The fact that, at the same time, an oral agreement was made that the money should not be paid till the thirty-first March, cannot be proved.

(c)

An estate called "The Rampur Tea Estate" is sold by a deed which contains a map of the property sold. The fact that land not included in the map had always been regarded a part of the estate and was meant to pass by the deed, cannot be proved.

(d)

A enters into a written contract with B to work certain mines, the property of B, upon certain terms. A was induced to do so by misrepresentation of B's as to their value. This fact may be proved.

(e)

A institutes a suit against B for the specific performance of a contract, and also prays that the contract may be reformed as to one of its provisions, as that provision was inserted in it by mistake. A may prove that such a mistake was made as would by law entitled him to have the contract reformed.

(f)

A orders goods of B by a letter in which nothing is said as to the time of payment, and accepts the goods on delivery. B sues A for the price. A may show that the goods were supplied on credit for a term still unexpired.

(g)

A sells B a horse and verbally warrants him sound. A gives B a paper in these words : "Bought of A a horse for Rs. 500". B may prove the verbal warrantly.

(h)

A hires lodgings of B, and gives B a card on which is written - "Rooms Rs. 200 a month". A may prove a verbal agreement that these terms were to include partial board.

A hires lodgings of B for a year, and a regularly stamped agreement, drawn up by an attorney, is made between them. It is silent on the subject of board. A may not prove that board was included in the terms verbally.

(i)

A applies to B for debt due to A by sending a receipt for the money. B keeps the receipt and does not send the money. In a suit for the amount, A may prove this.

(j)

A and B make a contract in writing to take effect upon the happening of a certain contingency. The writing is left with B, who sues A upon it. A may show the circumstances under which it was delivered.

93.

Exclusion of evidence to explain or amend ambiguous document.

When the language used in a document is, on its face, ambiguous or defective, evidence may not be given of fact which would show its meaning or supply its defects.

Illustrations

(a)

A agrees in writing, to sell a horse to B for "Rs. 1,000 or Rs. 1,500". Evidence cannot be given to show which price was to be given.

(b)

A deed contains blanks. Evidence cannot be given of facts which would show how they were meant to be filled.

94.

Exclusion of evidence against application of document to existing facts.

When language used in a document is plain in itself, and when it applies accurately to existing facts, evidence may not be given to show that it was not meant to apply to such facts.

Illustrations

A sells to B, by deed, "my estate at Rampur containing 100 bighas". A has an estate at Rampur containing 100 bighas. Evidence may not be given of the fact that the estate meant to be sold was one situated at a different place and of a different size.

95.

Evidence as to document unmeaning in reference to existing facts.

When language used in a document is plain in itself, but is unmeaning in reference to existing facts, evidence may be given to show that it was used in a peculiar sense.

Illustration

A sells to B, by deed, "my house in Calcutta".

A had no house in Calcutta, but it appears that he had a house at Howrah, of which B had been in possession since the execution of the deed.

These facts may be proved to show that the deed related to the house at Howrah.

96.

Evidence as to application of language which can apply to one only of several persons.

When the facts are such that the language used might have been meant to apply to any one, and could not have been meant to apply to more than one, of several persons or things, evidence may be given of facts which show which of those persons or things it was intended to apply to.

Illustrations

(a)

A agrees to sell to B, for Rs. 1,000 "my white horse". A has two white horses. Evidence may be given of facts which show which of them was meant.

(b)

A agrees to accompany B to Hyderabad. Evidence may be given of facts showing whether Hyderabad in the Deccan or Hyderabad in Sind was meant.

97.

Evidence as to application of language to one of two sets of facts, to neither of which the whole correctly applies.

When the language used applies partly to one set of existing facts, and partly to another set of existing facts, but the whole of it does not apply correctly to either, evidence may be given to show to which of the two it was meant to apply.

Illustration

A agrees to sell to B "my land at X in the occupation of Y". A has land at X, but not in the occupation of Y, and he has land in the occupation of Y, but it is not at X. Evidence may be given of facts showing which he meant to sell.

98.

Evidence as to meaning of illegible characters, etc.

Evidence may be given to show the meaning of illegible or not commonly intelligible characters, of foreign, obsolete, technical, local and provisional expressions, of abbreviations and of words used in a peculiar sense.

Illustration

A, a sculptor, agrees to sell to B, "all my mods". A has both models and modelling tools. Evidence may be given to show which he meant to sell.

99.

Who may give evidence of agreement varying terms of document.

Persons who are not parties to a document, or their representatives in interest, may give evidence of any facts tending to show a contemporaneous agreement varying the terms of the document.

Illustrations

A and B make a contract in writing that B shall sell A certain cotton, to be paid for on delivery. At the same time they make an oral agreement that three months' credit shall be given to A. This could not be shown as between A and B, but it might be shown by C, if it affected his interests.

100.

Saving of provisions of Indian Succession Act relating to wills.

Nothing in this Chapter contained shall be taken to affect any of the provisions of the [Indian Succession Act, (X of 1865)]

[Now see the Indian Succession Act, 1925 (39 of 1925

), Pt.VI, Chapter. VI.]

as to the construction of wills.

Part III ? Production And Effect Of Evidence

Chapter VII

Of the burden of proof

101.

Burden of proof.

Whoever desires any Court to give judgment as to any legal right or liability dependent on the existence of facts which he asserts, must prove that those facts exist.

When a person is bound to prove the existence of any fact, it is said that the burden of proof lies on that person.

Illustrations

(a)

A desires a Court to give judgment that B shall be punished for a crime which A says B has committed.

A must prove that B has committed the crime.

(b)

A desires a Court to give judgement that he is entitled to certain land in the possession of B, by reason of facts which he asserts and which B denies, to be true.

A must prove the existence of those facts.

102.

On whom burden of proof lies.

The burden of proof in a suit or proceeding lies on that person who would fail if no evidence at all were given on either side.

Illustrations

(a)

A sues B for land of which B is in possession, and which, as A asserts, was left to A by the will of C, B's father.

If no evidence were given on either side, B would be entitled to retain his possession.

Therefore the burden of proof is on A.

(b)

A sues B for money due on a bond.

The execution of the bond is admitted, but B says that it was obtained by fraud, which A denies.

If no evidence were given on either side. A would succeed, as the bond is not disputed and the fraud is not proved.

Therefore the burden of proof is on B.

103.

Burden of proof as to any particular fact.

The burden of proof as to any particular fact lies on that person who wishes the Court to believe in its existence, unless it is provided by any law that the proof of that fact shall lie on any particular person.

Illustrations

(a)

[[Sic.] In the Act published in Gazette of India, 1872, Pt.IV, p.1, there is no Illustration (b).] A prosecutes B for theft, and wishes the Court to believe that B admitted the theft to C. A must prove the admission.

(b)

B wishes the Court to believe that, at the time in question, he was elsewhere. He must prove it.

104.

Burden of proving fact to be proved to make evidence admissible.

The burden of proving any fact necessary to be proved in order to enable any person to give evidence of any other fact

is on the person who wishes to give such evidence.

Illustrations

(a)

A wishes to prove a dying declaration by B.

A must prove B's death.

(b)

A wishes to prove, by secondary evidence, the contents of a lost document.

A must prove that the document has been lost.

105.

Burden of proving that case of accused comes within exceptions.

When a person is accused of any offence, the burden of proving the existence of circumstances bringing the case within any of the General Exceptions in the Indian Penal Code (45 of 1860) or within any special exception or proviso contained in any other part of the same Code, or in any law defining the offence, is upon him, and the Court shall presume the absence of such circumstances.

Illustrations

(a)

A, accused of murder, alleges that, by reason of unsoundness of mind, he did not know the nature of the act.

The burden of proof is on A.

(b)

A, accused of murder, alleges that, by grave and sudden provocation, he was deprived of the power of self-control.

The burden of proof is on A.

(c)

Section 325 of the Indian Penal Code, 1860 (45 of 1860) provides that whoever, except in the case provided for by section 335, voluntarily causes grievous hurt, shall be subject to certain punishments.

A is charged with voluntarily causing grievous hurt under section 325.

The burden of proving the circumstances bringing the case under section 335 lies on A.

106.

Burden of proving fact especially within knowledge.

When any fact is especially within the knowledge of any person, the burden of proving that fact is upon him.

Illustrations

(a)

When a person does an act with some intention other than that which the character and circumstances of the act suggest, the burden of proving that intention is upon him.

(b)

A is charged with travelling in a railway without a ticket. The burden of proving that he had a ticket is on him.

107.

Burden of proving death of person known to have been alive within thirty years.

When the question is whether a man is alive or dead, and it is shown that he was alive within thirty years, the burden of proving that he is dead is on the person who affirms it.

108.

Burden of proving that a person is alive who has not been heard of for seven years.

[Provided that when]

[Substituted by Act 18 of 1872, Section 9, for "When".]

the question is whether a man is alive or dead, and it is proved that he has not been heard of for seven years by those who would naturally have heard of him if he had been alive, the burden of proving that he is alive is [shifted to]

[Substituted by Act 18 of 1872, Section 9, for "on".]

the person who affirms it.

109.

Burden of proof as to relationship in the cases of partners, landlord and tenant, principal and agent.

When the question is whether persons are partners, landlord and tenant, or principal and agent, and it has been shown that they have been acting as such, the burden of proving that they do not stand, or have ceased to stand, to each other

in those relationships respectively, is on the person who affirms it.

110.

Burden of proof as to ownership.

When the question is whether any person is owner of anything of which he is shown to be in possession, the burden of proving that he is not the owner is on the person who affirms that he is not the owner.

111.

Proof of good faith in transactions where one party is in relation of active confidence.

Where there is a question as to the good faith of a transaction between parties, one of whom stands to the other in a position of active confidence, the burden of proving the good faith of the transaction is on the party who is in a position of active confidence.

Illustrations

(a)

The good faith of a sale by a client to an attorney is in question in a suit brought by the client. The burden of proving the good faith of the transaction is on the attorney.

(b)

The good faith of a sale by a son just come of age to a father is in question in a suit brought by the son. The burden of proving the good faith of the transaction is on the father.

111-A. Presumption as to certain offences.

[Inserted by Act

61 of 1984

, Section 20 (w.e.f. 14.7.1984).]

(1)

Where a person is accused of having committed any offence specified in sub-section (2), in -

(a)

any area declared to be a disturbed area under any enactment, for the time being in force, making provision for the suppression of disorder and restoration and maintenance of public order; or

(b)

any area in which there has been, over a period of more than one month, extensive disturbance of the public peace, and it is shown that such person had been at a place in such area at a time when fire-arms or explosives were used at or from that place to attack or resist the members of any armed forces or the forces charged with the maintenance of public order acting in the discharge of their duties, it shall be presumed, unless the contrary is shown, that such person had committed such offence.

(2)

The offences referred to in sub-section (1) are the following, namely :-

(a)

an offence under Section 121-A, Section 122 or Section 123 of the Indian Penal Code (45 of 1860);

(b)

criminal conspiracy or attempt to commit, or abetment of, an offence under Section 122 or Section 123 of the Indian Penal Code.]

112.

Birth during marriage, conclusive proof of legitimacy.

The fact that any person was born during the continuance of a valid marriage between his mother and any man, or within two hundred and eighty days after its dissolution, the mother remaining unmarried, shall be conclusive proof that he is the legitimate son of that man, unless it can be shown that the parties to the marriage had no access to each other at any time when he could have been begotten.

113.

Proof of cession of territory.

A notification in the Official Gazette that any portion of British territory has [before the commencement of Part III of the Government of India Act, 1935 (26 Geo .5, c.2).]

[Inserted by A.O. 1937. Part III of the Government of India Act, 1935 came into force on the 1st April, 1937.]

been ceded to any Native State, Prince or Ruler, shall be conclusive proof that a valid cession of such territory took

place at the date mentioned in such notification.

113-A. Presumption as to abetment of suicide by a married woman.

[Inserted by Act 46 of 1983, Section 7.]

- When the question is whether the commission of suicide by a woman had been abetted by her husband or any relative of her husband and it is shown that she had committed suicide within a period of seven years from the date of her marriage and that her husband or such relative of her husband had subjected her to cruelty, the court may presume, having regard to all the other circumstances of the case, that such suicide had been abetted by her husband or by such relative of her husband.

Explanation. - For the purposes of this section, "cruelty" shall have the same meaning as in section 498-A of the Indian Penal Code (45 of 1860).]

113-B. Presumption as to dowry death.

[Inserted by Act 43 of 1986, Section 12 (w.e.f. 1.5.1986).]

- When the question is whether a person has committed the dowry death of a woman and it is shown that soon before her death such woman had been subjected by such person to cruelty or harassment for, or in connection with, any demand for dowry, the Court shall presume that such person had caused the dowry death.

Explanation. - For the purpose of this section, "dowry death" shall have the same meaning as in Section 304-B of Indian Penal Code (45 of 1860)].

114.

Court may presume existence of certain facts.

The Court may presume the existence of any fact which it thinks likely to have happened, regard being had to the common course of natural events, human conduct and public and private business, in their relation to the facts of the particular case.

Illustrations

The Court may presume -

(a)

that a man, who is in possession of stolen goods soon after the theft is either the thief or has received the goods knowing them to be stolen, unless he can account for his possession ;

(b)

that an accomplice is unworthy of credit, unless he is corroborated in material particulars ;

(c)

that a bill of exchange, accepted or endorsed, was accepted or endorsed for good consideration ;

(d)

that a thing or state of things which has been shown to be in existence within a period shorter than that within which such things or states of things usually cease to exist, is still in existence ;

(e)

that the judicial and official acts have been regularly performed ;

(f)

that the common course of business has been followed in particular cases ;

(g)

that evidence which could be and is not produced would, if produced, be unfavorable to the person who withholds it ;

(h)

that if a man refuses to answer a question which he is not compelled to answer by law, the answer, if given, would be unfavourable to him ;

(i)

that when a document creating an obligation is in the hands of the obligor, the obligation has been discharged.

But the Court shall also have regard to such facts as the following, in considering whether such maxims do or do not apply to the particular case before it-

As to Illustration (a) - A shopkeeper has in his till a marked rupee soon after it was stolen, and cannot account for its possession specifically, but is continually receiving rupees in the course of his business :

As to Illustration (b) - A, a person of the highest character, is tried for causing a man's death by an act of negligence in arranging certain machinery. B, a person of equally good character, who also took part in the arrangement, describes

precisely what was done, and admits and explains the common carelessness of A and himself.

As to Illustration (b) - A crime is committed by several persons. A, B and C, three of the criminals, are captured on the spot and kept apart from each other. Each gives an account of the crime implicating D, and the accounts corroborate each other in such a manner as to render previous concert highly improbable ;

As to Illustration (c) - A, the drawer of a bill of exchange, was a man of business. B, the acceptor, was a young and ignorant person, completely under A's influence :

As to Illustration (d) - It is proved that a river ran in a certain course five years ago, but it is known that there have been floods since that time which might change its course :

As to Illustration (e) - A judicial act, the regularity of which is in question, was performed under exceptional circumstances ;

As to Illustration (f) - The question is, whether a letter was received. It is shown to have been posted, but the usual course of the post was interrupted by disturbances :

As to Illustration (g) - A man refuses to produce a document which would bear on a contract of small importance on which he sued, but which might also injure the feelings and reputation of his family ;

As to Illustration (h) - A man refuses to answer a question which he is not compelled by law to answer, but the answer to it might cause loss to him in matters unconnected with the matter in relation to which it is asked :

As to Illustration (i) - A bond is in possession of the obligor, but the circumstances of the case are such that he may have stolen it.

114A. Presumption as to absence of consent in certain prosecution for rape.

In a prosecution for rape under clause (a), clause (b), clause (c), clause (d), clause (e), clause (f), clause (g), clause (h), clause (i), clause (j), clause (k), clause (l), clause (m) or clause (n) of sub-section (2) of section 376 of the Indian Penal Code, where sexual intercourse by the accused is proved and the question is whether it was without the consent of the woman alleged to have been raped and such woman states in her evidence before the court that she did not consent, the court shall presume that she did not consent.

Explanation. - In this section, "sexual intercourse" shall mean any of the acts mentioned in clauses (a) to (d) of section 375 of the Indian Penal Code.]

[Substituted by Criminal Law (Amendment) Act, 2013]

Prior to substitution by Criminal Law (Amendment) Act, 2013 section 114A read as:[114-A. Presumption as to absence of consent in certain prosecutions for rape.

[Inserted by Act 43 of 1983, Section 6.]

- In a prosecution for rape under clause (a) or clause (b) or clause (c) or clause (d) or clause (e) or clause (g) of sub-section (2) of section 376, of the Indian Penal Code, where sexual intercourse by the accused is proved and the question is whether it was without the consent of the woman alleged to have been raped and she states in her evidence before the Court that she did not consent, the Court shall presume that she did not consent.]

Chapter VIII

Estoppel

115.

Estoppel.

When one person has, by his declaration, act or omission, intentionally caused or permitted another person to believe a thing to be true and to act upon such belief, neither he nor his representative shall be allowed, in any suit or proceeding between himself and such person or his representative, to deny the truth of that thing.

Illustration

A intentionally and falsely leads B to believe that certain land belongs to A and thereby induces B to buy and pay for it. The land afterwards becomes the property of A, and A seeks to set aside the sale on the ground that, at the time of the sale, he had no title. He must not be allowed to prove his want of title.

116.

Estoppel of tenant; and of licensee of person in possession.

No tenant of immovable property, or person claiming through such tenant, shall, during the continuance of the tenancy, be permitted to deny that the landlord of such tenant had, at the beginning of the tenancy, a title to such immovable property and no person who came upon any immovable property by the licence of the person in possession thereof, shall be permitted to deny that such person had a title to such possession at the time when such licence was given.

117.

Estoppel of acceptor of bill of exchange, bailee or licensee.

No acceptor of a bill of exchange shall be permitted to deny that the drawer had authority to draw such bill or to endorse it; nor shall any bailee or licensee be permitted to deny that his bailor or licensor had, at the time when the bailment or licence commenced, authority to make such bailment or grant such licence.

Explanation 1. The acceptor of a bill of exchange may deny that the bill was really drawn by the person by whom it purports to have been drawn.

Explanation 2. If a bailee delivers the goods bailed to a person other than the bailor, he may prove that such person had a right to them as against the bailor.

Chapter IX

Of witnesses

118.

Who may testify.

All persons shall be competent to testify unless the Court considers that they are prevented from understanding the questions put to them, or from giving rational answers to those questions, by tender years, extreme old age, disease, whether of body or mind, or any other cause of the same kind.

Explanation. - A lunatic is not incompetent to testify, unless he is prevented by his lunacy from understanding the questions put to him and giving rational answers to them.

119.

Witness unable to communicate verbally.

A witness who is unable to speak may give his evidence in any other manner in which he can make it intelligible, as by writing or by signs; but such writing must be written and the signs made in open Court, evidence so given shall be deemed to be oral evidence:

Provided that if the witness is unable to communicate verbally, the Court shall take the assistance of an interpreter or a special educator in recording the statement, and such statement shall be videographed.]

[Substituted by Criminal Law (Amendment) Act, 2013]

Prior to substitution by Criminal Law (Amendment) Act, 2013 section 119 read as; 119. Dumb witnesses.- A witness who is unable to speak may give his evidence in any other manner in which he can make it intelligible, as by writing or by signs ; but such writing must be written and the signs made in open Court. Evidence so given shall be deemed to be oral evidence.

120.

Parties to civil suit and their wives or husbands - Husband or wife of person under criminal trial.

In all civil proceedings the parties to the suit, and the husband or wife of any party to the suit, shall be competent witnesses. In criminal proceedings against any person, the husband or wife of such person, respectively, shall be a competent witness.

121.

Judges and Magistrates.

No Judge or Magistrate shall, except upon the special order of some Court to which he is subordinate, be compelled to answer any questions as to his own conduct in Court as such Judge or Magistrate or as to anything which came to his knowledge in Court as such Judge or Magistrate ; but he may be examined as to other matters which occurred in his presence whilst he was so acting.

Illustrations

(a)

A, on his trial before the Court of Session, says that a deposition was improperly taken by B, the Magistrate. B cannot be compelled to answer questions as to this, except upon the special order of a superior Court.

(b)

A is accused before the Court of Session of having given false evidence before B, a Magistrate. B cannot be asked what A said, except upon the special order of the superior Court.

(c)

A is accused before the Court of Session of attempting to murder a police-officer whilst on his trial before B, a Session judge. B may be examined as to what occurred.

122.

Communications during marriage.

No person who is or has been married, shall be compelled to disclose any communication made to him during marriage by any person to whom he is or has been married ; nor shall he be permitted to disclose any such communication, unless the person who made it, or his representative-in-interest, consents, except in suits between married persons, or proceedings in which one married person is prosecuted for any crime committed against the other.

123.

Evidence as to affairs of State.

No one shall be permitted to give any evidence derived from unpublished official records relating to any affairs of State, except with the permission of the officer at the head of the department concerned, who shall give or withhold such permission as he thinks fit.

124.

Official communications.

No public officer shall be compelled to disclose communication, made to him in official confidence, when he considers that the public interests would suffer by the disclosure.

125.

[Information as to commission of offences.

[Substituted by Act 3 of 1887, Section 1, for the original Section 123.]

No Magistrate or Police Officer shall be compelled to say whence he got any information as to the commission of any offence, and no Revenue officer shall be compelled to say whence he got any information as to the commission of any offence against the public revenue.

Explanation. - "Revenue Officer" in this section means any officer employed in or about the business of any branch of the public revenue.]

126.

Professional communications.

No barrister, attorney, pleader or vakil, shall at any time be permitted, unless with his client's express consent, to disclose any communication made to him in the course and for the purpose of his employment as such barrister, pleader, attorney or vakil, by or on behalf of his client, or to state the contents or condition of any document with which he has become acquainted in the course and for the purpose of his professional employment, or to disclose any advice given by him to his client in the course and for the purpose of such employment :

Provided that nothing in this section shall protect from disclosure -

(1)

any such communication made in furtherance of any [illegal]

[Substituted by Act 18 of 1872, Section 10, for "criminal".]

purpose ;

(2)

any fact observed by barrister, pleader, attorney or vakil, in the course of his employment as such, showing that any crime or fraud has been committed since the commencement of his employment.

It is immaterial whether the attention of such barrister, [pleader]

[Inserted by Act 18 of 1872, Section 10.]

, attorney or vakil was or was not directed to such fact by or on behalf of his client.

Explanation. - The obligation stated in this section continues after the employment has ceased.

Illustrations

(a)

A, a client, says to B, an attorney - "I have committed forgery and I wish you to defend me".

As the defence of a man known to be guilty is not a criminal purpose, this communication is protected from disclosure.

(b)

A, a client, says to B, an attorney - "I wish to obtain possession of property by the use of a forged deed on which I request you to sue."

This communication, being made in furtherance of a criminal purpose, is not protected from disclosure.

(c)

A, being charged with embezzlement, retains B, an attorney, to defend him. In the course of the proceedings, B observes that an entry has been made in A's account-book, charging A with the sum said to have been embezzled, which entry was not in the book at the commencement of his employment.

This being a fact observed by B in the course of his employment, showing that a fraud has been committed since the commencement of the proceedings, it is not protected from disclosure.

127.

Section 126 to apply to interpreters, etc.

The provisions of section 126 shall apply to interpreters and the clerks or servants of barristers, pleaders, attorneys and vakils.

128.

Privilege not waived by volunteering evidence.

If any party to a suit gives evidence therein at his own instance or otherwise, he shall not be deemed to have consented thereby to such disclosure as is mentioned in section 126 ; and, if any party to a suit or proceeding calls any such barrister, [pleader]

[Inserted by Act 18 of 1872, Section 10.]

, attorney or vakil as a witness, he shall be deemed to have consented to such disclosure only if he questions such barrister, attorney or vakil on matters which, but for such question, he would not be at liberty to disclose.

129.

Confidential communications with legal advisers.

No one shall be compelled to disclose to the Court any confidential communication which has taken place between him and his legal professional adviser, unless he offers himself as a witness, in which case he may be compelled to disclose any such communications as may appear to the Court necessary to be known in order to explain any evidence which he has given, but no others.

130.

Production of title-deeds of witness, not a party.

No witness who is not a party to a suit shall be compelled to produce his title-deeds to any property, or any document in virtue of which he holds any property as pledgee or mortgagee, or any document the production of which might tend to criminate him, unless he has agreed in writing to produce them with the person seeking the production of such deeds or some person through whom he claims.

131.

Production of documents or electronic records which another person, having possession, could refuse to produce.

[Substituted by Act

21 of 2000

, Section 92 and Sch.II, for Section 131 (w.e.f. 17.10.2000).]

No one shall be compelled to produce documents in his possession or electronic records under this control, which any other person would be entitled to refuse to produce if they were in his possession or control, unless such last-mentioned person consents to their production.]

132.

Witness not excused from answering on the ground that answer will criminate.

A witness shall not be excused from answering any question, as to any matter relevant to the matter in issue in any suit or in any civil or criminal proceeding, upon the ground that the answer to such question will criminate, or may tend directly or indirectly to criminate, such witness, or that it will expose, or tend directly or indirectly to expose, such witness to a penalty or forfeiture of any kind :

Provided that no such answer, which a witness shall be compelled to give, shall subject him to any arrest or prosecution, or be proved against him, in any criminal proceeding, except a prosecution for giving false evidence by such answer.

133.

Accomplice.

An accomplice shall be a competent witness against an accused person; and a conviction is not illegal merely because it proceeds upon the uncorroborated testimony of an accomplice.

134.

Number of witnesses.

No particular number of witnesses shall in any case be required for the proof of any fact.

Chapter X

Of the examination of witnesses

135.

Order of production and examination of witnesses.

The order in which witnesses are produced and examined shall be regulated by the law and practice for the time being relating to civil and criminal procedure respectively, and, in the absence of any such law, by the discretion of the Court.

136.

Judge to decide as to admissibility of evidence.

When either party proposes to give evidence of any fact, the Judge may ask the party proposing to give the evidence in what manner the alleged fact, if proved, would be relevant; and the Judge shall admit the evidence if he thinks that the facts, if proved, would be relevant, and not otherwise.

If the fact proposed to be proved is one of which evidence is admissible only upon proof of some other fact, such last-mentioned fact must be proved before evidence is given of the fact first mentioned, unless the party undertakes to give proof of such fact and the Court is satisfied with such undertaking.

If the relevancy of one alleged fact depends upon another alleged fact being first proved, the Judge may, in his discretion, either permit evidence of the first fact to be given before the second fact is proved, or require evidence to be given of the second fact before evidence is given of the first fact.

Illustrations

(a)

It is proposed to prove a statement about a relevant fact by a person alleged to be dead, which statement is relevant under section 32.

The fact that the person is dead must be proved by the person proposing to prove the statement, before evidence is given of the statement.

(b)

It is proposed to prove, by a copy, the contents of a document said to be lost.

The fact that the original is lost must be proved by the person proposing to produce the copy, before the copy is produced.

(c)

A is accused of receiving stolen property knowing it to have been stolen.

It is proposed to prove that he denied to the possession of the property.

The relevancy of the denial depends on the identity of the property. The Court may, in its discretion, either require the property to be identified before the denial of the possession is proved, or permit the denial of the possession to be proved before the property is identified.

(d)

It is proposed to prove a fact (A) which is said to have been the cause or effect of a fact in issue. There are several intermediate facts, (B, C and D) which must be shown to exist before the fact (A) can be regarded as the cause or effect of the fact in issue. The Court may either permit A to be proved before B, C or D is proved, or may require proof of B, C and D before permitting proof of A.

137.

Examination-in-chief.

The examination of a witness by the party who calls him shall be called his examination-in-chief.

Cross-examination - The examination of a witness by the adverse party shall be called his cross-examination.

Re-examination. - The examination of a witness, subsequent to the cross-examination by the party who called him, shall be called his re-examination.

138.

Order of examinations.

Witnesses shall be first examined-in-chief then (if the adverse party so desires) cross-examined, then (if the party calling him so desires) re-examined.

The examination and cross-examination must relate to relevant facts, but the cross-examination need not be confined to the facts to which the witness testified on his examination-in-chief.

Direction of re-examination. - The re-examination shall be directed to the explanation of the matters referred to in cross-examination; and, if new matter is, by permission of the Court, introduced in re-examination, the adverse party may further cross-examine upon that matter.

139.

Cross-examination of person called to produce a document.

A person summoned to produce a document does not become a witness by the mere fact that he produces it, and cannot be cross-examined unless and until he is called as a witness.

140.

Witnesses to character.

Witnesses to character may be cross-examined and re-examined.

141.

Leading questions.

Any question suggesting the answer which the person putting it wishes or expects to receive, is called a leading question.

142.

When they must not be asked.

Leading questions must not, if objected to by the adverse party, be asked in an examination-in-chief, or in a re-examination, except with the permission of the Court.

The Court shall permit leading questions as to matters which are introductory or undisputed, or which have, in its opinion, been already sufficiently proved.

143.

When they may be asked.

Leading questions may be asked, in cross-examination.

144.

Evidence as to matters in writing.

Any witness may be asked, whilst under examination, whether any contract, grant or other disposition of property, as to which he is giving evidence, was not contained in a document, and if he says that it was, or if he is about to make any statement as to the contents of any document, which, in the opinion of the Court, ought to be produced, the adverse party may object to such evidence being given until such document is produced, or until facts have been proved which entitle the party who called the witness to give secondary evidence of it.

Explanation. - A witness may give oral evidence of statements made by other persons about the contents of documents if such statements are in themselves relevant facts.

Illustration

The question is, whether A assaulted B.

C deposes that he heard A say to D - "B wrote a letter accusing me of theft, and I will be revenged on him." This statement is relevant, as showing A's motive for the assault, and evidence may be given of it, though no other evidence is given about the letter.

145.

Cross-examination as to previous statements in writing.

[As the application of Section 145 to police diaries, see the Code of Criminal Procedure, 1973 (2 of 1974), Section 172.]

A witness may be cross-examined as to previous statements made by him in writing or reduced into writing, and relevant to matters in question, without such writing being shown to him, or being proved; but, if it is intended to contradict him by the writing, his attention must, before the writing can be proved, be called to those parts of it which are to be used for the purpose of contradicting him.

146.

Questions lawful in cross-examination.

When a witness is cross-examined, he may, in addition to the questions hereinbefore referred to, be asked any questions which tend -

(1)

to test his veracity,

(2)

to discover who he is and what is his position in life, or

(3)

to shake his credit, by injuring his character, although the answer to such questions might tend directly or indirectly to criminate him or might expose or tend directly or indirectly to expose him to a penalty or forfeiture.

[Provided that in a prosecution for an offence under section 376, [section 376A, section 367AB, section 376B, section 376C, section 376D, section 376DA, section 376DB]

[Substituted by Criminal Law (Amendment) Act, 2013]

or section 376E of the Indian Penal Code or for attempt to commit any such offence, where the question of consent is an issue, it shall not be permissible to adduce evidence or to put questions in the cross-examination of the victim as to the general immoral character, or previous sexual experience, of such victim with any person for proving such consent or the quality of consent.]

147.

When witness to be compelled to answer.

If any such question relates to a matter relevant to the suit or proceeding, the provisions of section 132 shall apply thereto.

148.

Court to decide when question shall be asked and when witness compelled to answer.

If any such question relates to a matter not relevant to the suit or proceeding, except in so far as it affects the credit of the witness by injuring his character, the Court shall decide whether or not the witness shall be compelled to answer it, and may, if it thinks fit, warn the witness that he is not obliged to answer it. In exercising its discretion, the Court shall have regard to the following considerations :-

(1)

Such questions are proper if they are of such a nature that the truth of the imputation conveyed by them would seriously affect the opinion of the Court as to the credibility of the witness on the matter to which he testifies;

(2)

Such questions are improper if the imputation which they convey relates to matters so remote in time, or of such a character, that the truth of the imputation would not affect, or would affect in a slight degree, the opinion of the Court as to the credibility of the witness on the matter to which he testifies;

(3)

Such questions are improper if there is a great disproportion between the importance of the imputation made against the witness's character and the importance of his evidence;

(4)

The Court may, if it sees fit, draw from the witness's refusal to answer, the inference that the answer if given would be unfavourable.

149.

Question not to be asked without reasonable grounds.

No such question as is referred to in section 148, ought to be asked, unless the person asking it has reasonable grounds for thinking that the imputation which it conveys is well founded.

Illustrations

(a)

A barrister is instructed by an attorney or vakil that an important witness is a dacoit. This is a reasonable ground for asking the witness whether he is a dacoit.

(b)

A pleader is informed by a person in Court that an important witness is a dacoit. The informant, on being questioned by the pleader, gives satisfactory reasons for his statement. This is reasonable ground for asking the witness whether he is a dacoit.

(c)

A witness, of whom nothing whatever is known, is asked at random whether he is a dacoit. There are here no reasonable grounds for the questions.

(d)

A witness, of whom nothing whatever is known, being questioned as to his mode of life and means of living gives unsatisfactory answers. This may be a reasonable ground for asking him if he is a dacoit.

150.

Procedure of Court in case of question being asked without reasonable grounds.

If the Court is of opinion that any such question was asked without reasonable grounds, it may, if it was asked by any barrister, pleader, vakil or attorney, report the circumstances of the case to the High Court or other authority to which such barrister, pleader, vakil or attorney is subject in the exercise of his profession.

151.

Indecent and scandalous questions.

The Court may forbid any questions or inquiries which it regards as indecent or scandalous, although such questions or inquiries may have some bearing on the questions before the Court unless they relate to facts in issue, or to matters, necessary to be known in order to determine whether or not the facts in issue existed.

152.

Questions intended to insult or annoy

The Court shall forbid any question which appears to it to be intended to insult or annoy, or which, though proper in itself, appears to the Court needlessly offensive in form.

153.

Exclusion of evidence to contradict answers to questions testing veracity.

When a witness has been asked and has answered any question which is relevant to the inquiry only in so far as it tends to shake his credit by injuring his character, no evidence shall be given to contradict him; but, if he answers falsely, he may afterwards be charged with giving false evidence.

Exception 1. - If a witness is asked whether he has been previously convicted of any crime and denies it, evidence may be given of his previous conviction.

Exception 2. - If a witness is asked any question tending to impeach his impartiality, and answers it by denying the facts suggested, he may be contradicted.

Illustrations

(a)

A claim against an underwriter is resisted on the ground of fraud.

The claimant is asked whether, in a former transaction, he had not made a fraudulent claim. He denies it.

Evidence is offered to show that he did make such a claim :

The evidence is inadmissible.

(b)

A witness is asked whether he was not dismissed from a situation for dishonesty.

He denies it.

Evidence is offered to show that he was dismissed for dishonesty

The evidence is not admissible.

(c)

A affirms that on a certain day he saw B at Lahore.

A is asked whether he himself was not on that day at Calcutta. He denies it.

Evidence is offered to show that A was on that day at Calcutta.

The evidence is admissible, not as contradicting A on a fact which affects his credit, but as contradicting the alleged fact that B was seen on the day in question in Lahore.

In each of these cases the witnesses might, if his denial was false, be charged with giving false evidence.

(d)

A is asked whether his family has to had a blood-feud with the family of B against whom he gives evidence.

He denies it. He may be contradicted on the ground that the question tends to impeach his impartiality.

154.

Question by party to his own witness.

[(1)]

[Section 154 numbered as sub-Section (1) thereof and sub-Section (2) inserted by the Criminal Law (Amendment) Act, 2005 (2 of 2006), Section 9 (w.e.f. 16.4.2006).]

The Court may, in its discretion, permit the person who calls a witness to put any questions to him which might be put in cross-examination by the adverse party.

(2)

[Nothing in this Section shall disentitle the person so permitted under sub-Section (1), to rely on any part of the evidence of such witness.]

[Section 154 numbered as sub-Section (1) thereof and sub-Section (2) inserted by the Criminal Law (Amendment) Act, 2005 (2 of 2006), Section 9 (w.e.f. 16.4.2006).]

155.

Impeaching credit of witness.

The credit of a witness may be impeached in the following ways by the adverse party, or, with the consent of the Court, by the party who calls him :-

(1)

by the evidence of persons who testify that they, from their knowledge of the witness, believe him to be unworthy of credit ;

(2)

by proof that the witness has been bribed, or has [accepted]

[Substituted by Act 18 of 1872, Section 11, for "had".]

the offer of a bribe, or has received any other corrupt inducement to give his evidence ;

(3)

by proof of former statements inconsistent with any part of his evidence which is liable to be contradicted ;

[* * *]

[Sub-Clauses (4) omitted by Act

4 of 2003

, Section 3 (w.e.f. 1.1.2003). Prior to its omission, sub-Clause (4) read as under:- [(4) when a man is prosecuted for rape or an attempt to ravish, it may be shown that the prosecutrix was of generally immoral character].]

Explanation. - A witness declaring another witness to be unworthy of credit may not, upon his examination-in-chief, give reasons for his belief, but he may be asked his reasons in cross-examination, and the answers which he gives cannot be contradicted, though, if they are false, he may afterwards be charged with giving false evidence.

Illustrations

(a)

A sues B for the price of goods sold and delivered to B. C says that he delivered the goods to B.

Evidence is offered to show that, on a previous occasion, he said that he had not delivered the goods to B.

The evidence is admissible.

(b)

A is indicted for the murder of B.

C says that B, when dying, declared that A had given B the wound of which he died.

Evidence is offered to show that, on a previous occasion, C said that the wound was not given by A or in his presence.

The evidence is admissible.

156.

Questions tending to corroborate evidence of relevant fact, admissible.

When a witness whom it is intended to corroborate gives evidence of any relevant fact, he may be questioned as to any other circumstances which he observed at or near to the time or place at which such relevant fact occurred, if the Court is of opinion that such circumstances, if proved, would corroborate the testimony of the witness as to the relevant fact which he testifies.

Illustration

A, an accomplice, gives an account of a robbery in which he took part. He describes various incidents unconnected with the robbery which occurred on his way to and from the place where it was committed.

Independent evidence of these facts may be given in order to corroborate his evidence as to the robbery itself.

157.

Former statements of witness may be proved to corroborate later testimony as to same fact.

In order to corroborate the testimony of a witness, any former statement made by such witness relating to the same fact,

at or about the time when the fact took place, or before any authority legally competent to investigate the fact, may be proved.

158.

What matters may be proved in connection with proved statement relevant under section 32 or 33.

Whenever any statement, relevant under section 32 or 33, is proved, all matters may be proved, either in order to contradict or to corroborate it, or in order to impeach or confirm the credit of the person by whom it was made, which might have been proved if that person had been called as a witness and had denied upon cross-examination the truth of the matter suggested.

159.

Refreshing memory.

A witness may, while under examination, refresh his memory by referring to any writing made by himself at the time of the transaction concerning which he is questioned, or so soon afterwards that the Court considers it likely that the transaction was at that time fresh in his memory.

The witness may also refer to any such writing made by any other person and read by the witness within the time aforesaid, if when he read it he knew it to be correct.

When witness may use copy of document to refresh his memory. - Whenever a witness may refresh his memory by reference to any document, he may, with the permission of the Court, refer to a copy of such document :

Provided the Court be satisfied that there is sufficient reason for the non-production of the original.

An expert may refresh his memory by reference to professional treatises.

160.

Testimony to facts stated in document mentioned in section 159.

A witness may also testify to facts mentioned in any such document as is mentioned in section 159, although he has no specific recollection of the facts themselves, if he is sure that the facts were correctly recorded in the document.

Illustration

A book-keeper may testify the facts recorded by him in books regularly kept in the course of business, if he knows that the books were correctly kept, although he has forgotten the particular transactions entered.

161.

Right of adverse party as to writing used to refresh memory

[As to the application of Section 161 to police diaries, see the Code of Criminal Procedure, 1973 (2 of 1974), Section 172.]

. Right of adverse party as to writing used to refresh memory.

Any writing referred to under the provisions of the two last preceding sections must be produced and shown to the adverse party if he requires it ; such party may, if he pleases, cross-examine the witness thereupon.

162.

Production of documents.

A witness summoned to produce a document shall, if it is in his possession or power, bring it to Court, notwithstanding any objection which there may be to its production or to its admissibility. The validity of any such objection shall be decided on by the Court.

The Court, if it sees fit, may inspect the document, unless it refers to matters of State, or take other evidence to enable it to determine on its admissibility.

Translation of documents. - If for such a purpose it is necessary to cause any document to be translated, the Court may, if it thinks fit, direct the translator to keep the contents secret, unless the document is to be given in evidence ; and, if the interpreter disobeys such direction, he shall be held to have committed an offence under section 166 of the Indian Penal Code (Act XLV of 1860).

163.

Giving, as evidence, of document called for and produced on notice.

When a party calls for a document which he has given the other party notice to produce, and such document is produced and inspected by the party calling for its production, he is bound to give it as evidence if the party producing it requires him to do so.

164.

Using, as evidence, of document, production of which was refused on notice.

When a party refuses to produce a document which he has had notice to produce, he cannot afterwards use the document as evidence without the consent of the party or the order of the Court.

Illustration

A sues B on an agreement and gives B notice to produce it. At the trial, A calls for the document and B refuses to produce it. A gives secondary evidence of its contents. B seeks to produce document itself to contradict the secondary evidence given by A, or in order to show that the agreement is not stamped. He cannot do so.

165.

Judge's power to put questions or order production.

The judge may, in order to discover or to obtain proper proof of relevant facts, ask any question he pleases, in any form, at any time, of any witness, or of the parties, about any fact relevant or irrelevant ; and may order the production of any document or thing ; and neither the parties nor their agents shall be entitled to make any objection to any such question or order, nor, without the leave of the Court, to cross-examine any witness upon any answer given in reply to any question:

Provided that the judgment must be based upon facts declared by this Act to be relevant and duly proved :

Provided also that this section shall not authorise any Judge to compel any witness to answer any question or to produce any document which such witness would be entitled to refuse to answer or produce under sections 121 to 131, both inclusive, if the question were asked or documents were called for by the adverse party; nor shall the Judge ask any question which it would be improper for any other person to ask under section 148 or 149; nor shall he dispense with primary evidence of any document , except in the cases hereinbefore excepted.

166.

Power of jury or assessors to put questions.

In cases tried by jury or with assessors, the jury or assessors may put any questions to the witnesses, through or by leave of the Judge, which the Judge himself might put and which he considers proper.

Chapter XI

Of improper admission and rejection of evidence

167.

No new trial for improper admission or rejection of evidence.

The improper admission or rejection of evidence shall not be ground of itself for a new trial or reversal of any decision in any case, if it shall appear to the Court before which such objection is raised that, independently of the evidence objected to and admitted, there was sufficient evidence to justify the decision, or that, if the rejected evidence had been received, it ought not to have varied the decision.

The Schedule [Enactments repealed]. - [Repealed by the Repealing Act, 1938 (1 of 1938), section 2 and Schedule.]

Related AI tags, queries and research notes

Translation